

His Honor J. Vinton Holder, Judge, Monthly and Probate Court for Montserrado County and **Bassam H. Jawhary** of the City of Monrovia, Liberia, Appellants Versus **Oumou Sirleaf-Hage, Bashir M. Hage, Rachel M. Hage, Elie M. Hage, Tony M. Hage, Terrez G. Safi And Lor G. Azar** of the City of Monrovia, Liberia, Appellees

APPEAL

LRSC 23

HEARD: December 31, 2013 DECIDED: January 24, 2014

MR. CHIEF JUSTICE KORKPOR DELIVERED THE OPINION OF THE COURT.

This case is before the Supreme Court en banc on an appeal from the ruling of our distinguished colleague, Madam Justice Sie-A-Nyene G. Yuoh, presiding in Chambers, which ruling granted a writ of prohibition to the appellees. The appellees had filed a motion before the Monthly & Probate Court for Montserrado County presided over by His Honor Vinton J. Holder requesting the Probate Court to (a) exclude certain properties said to be owned by them, from the testate estate of the late Milad R. Hage, a Lebanese citizen and (b) to have Bassam H. Jawhary, Executor of the Milad R. Hage Estate audited in respect of his administration of the said estate. Judge Holder denied the appellee's request in part and granted it in part. With regards to the appellees' request for audit, the Judge ruled that the Executor should undertake an audit of his stewardship of the estate and make a report to the court. The appellant noted exception to this portion of the Judge's ruling and gave notice that he would take advantage of the law. With regards to the request to exclude from the Hage Estate properties *which* the appellees claimed belonged to them, the Judge ruled that such was not the case and that the properties belonged to the Hage Estate. The appellees took exception to this portion of the Judge's ruling and like the appellant, gave notice that they would "take advantage of the statute controlling, if need be. No remedial writ was filed or appeal taken by either party for a review of the ruling of the Probate Judge. However, eight months later, the appellees, not being satisfied with how the affairs of the Hage Estate was being conducted and believing that the Judge had erred in denying the exclusion of their properties from the Hage Estate, filed a petition for a writ of prohibition against the Probate Judge, praying the Chambers Justice to reverse his ruling denying appellees' motion to exclude their properties from the testate estate of the late Milad R. Hage.

The appellees also prayed the Chambers Justice to issue an intermediate order to Judge Holder, "ordering him to exclude those properties owned by them from the deceased estate and have same forthwith turned over to petitioners.

We shall revert to the petition for prohibition later in this opinion. But first we set forth and discuss in detail the genesis of this rather complex and complicated probate matter.

The certified records before us show that Milad R. Hage (hereinafter Mr. Hage) came to Liberia many years ago and was involved in commercial business. He was originally married to Mrs. Ogla Hage, a Lebanese national, and the union was blessed with four children, Terez G.Hage-Safi, Elie M. Hage,

Tony M. Hage and Lor Hage-Azar. Mrs. Ogla Hage predeceased her husband. Milad R. Hage later married Mrs. Oumou Sirleaf- Hage, a Liberian national, which union was blessed with three children, Bashir M. Hage, Rocket (Rachel) M. Hage, and Monica M. Hage.

On July 7, 1998, the late Milad R. Hage, and co-appellee Oumou Sirleaf-Hage, (his wife) executed a lease agreement covering certain real property owned by co-appellee Oumou Sirleaf-Hage, situated, lying and located at Red Light in the City of Paynesville, Montserrado County, Republic of Liberia. According to the records, the property, subject of the lease agreement was bought by Mr. Hage in the names of co-appellee, Oumou Sirleaf-Hage and her children. The Lease Agreement was probated and registered in accordance with law on October 2, 1998. We quote verbatim the lease agreement:

REPUBLIC OF LIBERIA

MONTSERRADO COUNTY

LEASE AGREEMENT

THIS AGREEMENT OF LEASE is made and entered into this 7th day of July A.D. 1998, by and between Oumou Sirleaf of the City of Paynesville, Montserrado County, Republic of Liberia, hereinafter known and referred to as the LESSOR, and Milad R. Hage also residing and doing business in the City of Paynesville, Montserrado County, Republic of Liberia hereinafter known and referred to as the LESSEE, hereby:

WITNESSETH

1. That for and in consideration of the rents, agreements and stipulations herein given, expressed and contained to be paid, kept and performed by the Lessee, the Lessor has granted, leased and demised, and by these presents hereby grants, leases and demises unto the Lessee her property, that is, a parcel of land situated, lying and being in the City of Paynesville, in the vicinity known and referred to as RED LIGHT, Montserrado County, Republic of Liberia, with metes and bounds as follows to wit:

Commencing at a concrete monument marked AB, formerly owned by Anthony Barclay, Sr., situated at the southwest corner of Lot No. CC-4 of Block No. 2, Range 1, by the Monrovia-Kakata Highway, and thence running on magnetic bearings South 46 degrees 05' 16" West, 108.5 feet along the said Monrovia-Kakata Highway to a point; thence running South 33 degrees 35' 06" East, 185 feet to a point; thence running North 56 degrees 24' 54" East, 108 feet to a point; thence running North 33 degrees 35' 06" West, 198 feet parallel with Lots CC-8 and CC-4 of Block No. 2, Range 1, to the place of commencement, and containing 1.3 Lots or 0.38 acres of land and no more.

2.-TO HAVE AND TO HOLD the above described and demised premises unto the Lessee herein together with all and singular the rights, privileges and appurtenances thereunto belonging for a period of eight (8) calendar years certain, commencing on the 15th day of July, A.D. 1998, and ending on the 14th day of July, A.D. 2006. The Parties agree that the Lessee shall have the option to renew this Agreement for an additional period of Five (5) years, to commence immediately upon the expiration of the certain period herein granted.

3. That for and in consideration of the occupancy and use of the herein demised premises Lessee hereby agrees and promises to pay or cause to be paid to the Lessor rental of One thousand United States (US\$1,000.00) Dollars per annum, payable annually in advance on the 15th day of July of each and every year during the life of this Lease, that is, the certain period. That during the optional period, Lessee will pay or cause to be paid to Lessor an annual rental of One Thousand, Five Hundred United States (US\$1,500.00) Dollars, payable annually in advance on the 15th day of July of each and every year during the optional period.

4. It is further agreed and understood by and between the Parties hereto that the Lessee will utilize the demised premises to construct a commercial building which Lessee will use to facilitate his business operations.

5. The Parties further agree that the Lessee shall be responsible for the payment of all taxes, which shall include REAL ESTATE TAX, and the ten percent (10%) Coast Guard Tax or REALTY LEASE TAX. He will also be responsible for and pay all utility bills such as water, electricity and telephone which shall be consumed in the demised premises during the life of this Agreement.

6. It is also mutually agreed between the parties that the Lessee shall have the right to sub-lease or assign any portion or the whole of the demised premises during the life of this Agreement.

7. The Lessor hereby covenants, agrees and promises that if the Lessee pays the rent as herein agreed and provided, and performs the other covenants and agreement herein contained, he will quietly and peaceably have, hold, possess and enjoy the said demise premises during the full life of this Agreement, without hindrance or molestation from any person(s) whomsoever may claim ownership to the demise premises, and the Lessor further covenants and promises that she will WARRANT and DEFEND this lease during the full period(s) herein granted.

8. The Lessee also promises and agrees that at the expiration of the period herein granted he will quietly and peaceably yield and surrender to the Lessor, her heirs, executors or administrators the herein leased premises in as good a condition as reasonable wear and tear thereof will permit; Acts of God and damages not traceable to the Lessee's negligence excepted.

9. The Parties agree that the terms and conditions of this Lease shall extend to and be binding upon them, their heirs, executors, administrators, assigns and successors-in-business during the full life of this Lease.

IN WITNESS WHEREOF the Parties hereto have hereunto set their hands and affixed their signatures on the day and date hereinabove written

WITNESSES:

PARTIES:

OMOU SIRLEAF-LESSOR

MILAD R. HAGE-LESSEE

Our review of the certified records of this case indicates that Mr. Hage died in Beit Al-Chaar, Lebanon, on April 19, 2010 and was buried on April 20, 2010, and that at the time of his death, he was seized of many personal and leasehold properties in Monrovia, Montserrado County and Kakata, Margibi County, including ten (10) stores with eight apartments thereon and one hundred and seventy-two (172) stores without apartments. Eighty-six (86) of these buildings were alleged to be constructed on real properties owned by co-appellee Oumou Sirleaf Hage (formerly known as Oumou Sirleaf and her children.

Our review of the records also indicates that, three months before he died, Mr. Hage purportedly executed his Last Will and Testament on January 19, 2010, followed by two Addendums on January 25, 2010 and March 26, 2010, respectively. The Last Will and Testament and the Addendums appointed Mr. Bassam H. Jawhary as Executor and Trustee. We quote the purported Last Will and Testament of Mr. Milad R. Hage:

LAST WILL AND TESTAMENT OF MILAD R. HAGE,
LAST WILL AND TESTAMEDNT
OF
MILAD R. HAGE
ITEM NO.I

Debts, Expenses and Taxes

I direct my executor, hereinafter named, to pay all my matured debts and funeral expenses, as well as the costs and administration of my estate, as soon after my death as practicable. I further direct that all estate, inheritance, transfer and succession taxes which are payable by reason of the WILL, be paid out of my remaining estate; and I hereby waive on behalf of my estate any right to recover from my person any part of such taxes so paid.

My executor, in his sole discretion, may pay from my remaining estate all or any portion of the costs of ancillary administration and similar proceedings in other jurisdiction.

ITEM NO. II

Instruction Concerning Personal Property

I anticipate that included as part of my property and estate at the time of my death Will be tangible personal property personal of various kind and other items accumulated by me during my investment both in Monrovia and Kakata, Margibi County. I hereby specifically instruct all concerned that my executor, herein appointed, shall have complete freedom and discretion as to the management and

control of any and all such property so long as he shall act in good faith and in the best interest of my estate and my beneficiaries, and his discretion so exercised shall not be subject to question by anyone whomsoever.

If I am the owner of any real estate at the time of my death, I instruct and empower my executor and my Trustee (as the case may be) to hold such real estate for investment.

ITEM NO. III

After payment of all debts, expenses and taxes as directed under Item No. I hereof, I hereby give the residue or remainder of my estate and any property over which I have a power [oij] appointment to my Trustee, hereinafter named, in trust for the following purposes:

a. The Trustee is directed to take, hold, manage, invest, and to collect the income there from in accordance with the rights, power, duties, authority and direction hereafter set forth. The TRUSTEE is directed to pay all the expenses, taxes and costs incurred in the management of the trust estate out of the income hereof.

b. After payment of all expenses, taxes and costs incurred in the Management of the Trust Estate, the Trustee is authorized to accumulated [sic] yearly or to pay or apply so much of the net income and such portion of the principal at any time and from time to time for education, health, support, comfortable maintenance and welfare of my Liberian wife and children listed below by giving each of the beneficiary the yearly amount of the net income accumulated from the estate as stipulated.

My Trustee hereinafter named, is also authorized to apply so much of the net income and such portion of the principal at any time and from time to time for education, health, support, comfortable maintenance and welfare of my Lebanese children residing in Lebanon and America respectively as listed below yearly of the net income accumulated from the estate by the Trustee.

The payment of the supra mentioned benefits will take effect after the payment of all (any debts that I owed the Eco-Bank of Liberia, Inc. or any persons) as well as institutions.

Such other relatives of mine living at the time of my death who in the absolute discretion of my Trustee are in need of emergency assistance for any of the above mentioned purposes and the Trustee is able to make such discretion without affecting the ability of the trust to meet the present needs of the first two (2) categories of beneficiaries herein mentioned or to meet the reasonable expected future needs of the first (2) classes of beneficiaries herein mentioned, any decision of the Trustee as to whether or not distribution to any of the persons described hereunder shall be final and conclusive and not subject to question by beneficiaries.

The Trustee may distribute any part of the net income as stated above in mentioned amount in his uncontrolled discretion, considers necessary or desirable to provide for the comfortable support,

education, maintenance, benefit, general welfare of each of my children and their Liberian Mother Omon Sirleaf Hage, and Lebanese children. Such distributions may be made directly to such beneficiary or to the guardian of the person of such beneficiary and without responsibility on my Trustee to see to the application of any distributions.

If any of my beneficiaries for whose benefit a trust has been created hereunder should die, the trust created for such beneficiary (ies), shall be transferred to his or her children in equal shares for comfortable support of education, maintenance, benefit and general welfare of each of the children. If there be however no surviving issue, then such benefit goes to the brothers and sisters of such deceased beneficiary in equal shares.

ITEM NO. IV

In the event that all my beneficiaries be deceased at any time prior to the termination of the trusts provided for herein, then in such event all of the estate and all assets of every trust to be created hereunder (as the case may be) shall then be distributed outright in equal shares to my heirs at law per stripes.

ITEM NO. V

If any provision of this WILL are unenforceable, the remaining provisions shall nevertheless, be carried into effect.

ITEM NO. VI

If my estate if the beneficiary of any life insurance [sic] on my life at the time of my death, I direct that the proceeds therefore will be used by my Executor in payment of the debts, expenses, and taxes listed in ITEM NO. I of this WILL, to the extent deemed advisable by my Executor. All such proceeds not so used are to be used by my Executor for the purpose of satisfying the beneficiaries.

ITEM NO. VIII

I appoint as Executor [of] my last WILL and Testament, and as Trustee of every trust required to be created hereinafter, Mr. Bassam H. Jawhary, a resident of UN Drive- waterside, Monrovia.

I hereby direct that my said Executor shall be entitled by this last WILL and Testament, duly probated, to appoint a Successor Executor of my Estate, as well as Successor Trustees of all the [trusts] created under my last WILL and testament.

If for any reason, my Executor be unable to serve or to continue to serve as Executor and/or as Trustee, or if he be deceased and shall not have appointed a Successor Executor or Trustee, by virtue

of the last WILL and Testament as stated above, then I appoint Adam B. Jawhary [as] his Successor Executor and/or Successor Trustee of all trusts required to be established hereunder.

None of the appointees named hereunder, including any appointment made by virtue of the last WILL and Testament by my Executor, shall be required to furnish any bond or security for performance of the respective fiduciary duties required hereunder, notwithstanding any rule of law of the contrary.

ITEM NO. IX

a. If at any time the Trustee shall have reasonable doubt as to this power, authority or duty in the administration of any trust herein created, it shall be lawful for the Trustee to obtain the advice and counsel of reputable legal counsel resorting to the courts for instructions; the trustee shall be fully resolved from all liability and damage or detriment to the various trust estates of any beneficiary hereunder by reason of anything done, suffered or omitted pursuant to advice of said legal counsel given [or] obtained in good faith, provided that nothing contained herein shall be constructed to prohibit or prevent the Trustee in all proper cases from applying to a court for competent jurisdiction for instructions in the administration of the trust assets in lieu of obtaining advice of counsel

b. In managing, investing and controlling the various trust estates, the Trustee shall exercise the judgment and care under the circumstances then prevailing, which men of prudence discretion and judgment exercise in the management of their affairs, not in regard to speculation, but in regard to the permanent disposition of their funds, considering the portable income as well as the probable safety of their capital, and in addition, the purchasing power of income distribution to beneficiaries.

c. My Trustee (as well as my Executor) shall be entitled to reasonable and adequate compensation for the fiduciary services rendered by him.

d. In referring to my fiduciary hereunder, for purposes of construction, masculine pronouns may include a corporate fiduciary and neutral pronouns may include individual fiduciary.

ITEM NO. X

a. Having in mind the rule against perpetuities, I direct that (notwithstanding anything contained to the contrary in this last WILL and Testament) each trust created under this Will (except trusts as have heretofore vested in compliance with such rule of law) shall end unless sooner terminated under other provisions of this WILL, Twenty Five (25) years after the death of the last survivor of such of the beneficiaries hereunder as are living at the time of my death; and thereupon that the property held in trust shall be distributed free of all trust to the persons that [are] entitled to receive income and/or principal therefrom, in the proportion in which they are then entitled to receive such income.

b. Notwithstanding anything else contained in this Will to the contrary, I direct that any distribution under this WILL become[s] payable to a person for whom the Trustee in then administering a trust created hereunder for the benefit of such person, such distribution shall be made to such trust and not to the beneficiary outright; and funds so passing to such trust shall become a part thereof as principal sum and be administered and distributed to the same extent and purpose as if such funds had been a part of such a trust as [at or on its inception.

ITEM NO. XI

I expressly state that this my last WILL and Testament should not or never be challenged or contested by any of all beneficiaries herein named under this WILL. Any beneficiary who will contest or challenge this WILL, be denied of any and all benefits.

IN WITNESS WHEREOF, I, the said MILAD R. Hage, do hereto set my hand and seal in the presence of two (2) competent witnesses and in their presence do publish and declare this instrument to be my LAST WILL AND TESTAMENT, this 19 day of January 2010,

Signed:

MILAD R . HAGE

The foregoing instrument, consisting of this and EIGHT (8) preceding type written pages, was signed, sealed, published and declared by MILAD R. Hage, the TESTATOR, to be his LAST WILL AND TESTAMENT, in our presence, and we, at his request and in his presence and in the presence of each other, have hereto subscribed our names as witness this 19 of January 2010, at Paynesville, Montserrado, Montserrado County, Liberia

Peter K. Bernard P.K

Prince Kanneh

Subsequent to the execution of the above quoted Last Will and Testament, Mr. Hage, on January 25, 2010 and March 26, 2010, respectively, executed two Addendums to said Last Will and Testament. We quote verbatim the two Addendums, as follows:

AN ADDENDUM TO THE LAST WILL AND TESTAMENT

OF

MR. MILAD R. HAGE

I, Milad R. Hage, being of sound mind and disposing memory, do hereby make, publish and declare this addendum to my LAST WILL AND TESTAMENT, hereby including it as supplement by me at any time hereto for made.

I. That Item No. III(b), in my LAST WILL AND TESTAMENT concerning payment of benefits to my two categories of children (Liberian and Lebanese) respectively as well as my Liberian wife, Omou Sirleaf, will take effect after my Executor or TRUSTEE has paid all my matured debts that is [are]

owed to banks, person(s) or institutions, etc. This will afford my Executor or Trustee enough and reasonable time which will be needed to pay-off all Banks, Person(s), etc. owed by me.

2. That my Executor or Trustee shall apply minimum amounts of the net income accumulated from my Estate yearly to my Liberian children and their mother for health, feeding and education; while at the same time paying my debts owed to person(s), Banks and other institutions. However, this extra support supra mentioned, shall cease to exist for my Lebanese and Liberian children and their mother immediately after the Executor or Trustee has completed the payments of all my debts.

In witness whereof, I, Milad R. Hage

Do hereto set my hand and seal in the presence of Two (2) competent witnesses and in their presence do Publish And declare this addendum to be part of my Last Will And Testament this 25 day of January 2010

Signed:

Milad R. Hage

SECOND ADDENDUM TO THE LAST WILL AND TESTAMENT

OF

MR. MILAD R. HAGE

I, Milad R. Hage, now residing in Lebanon, City of Beirut (Beit Al Chaar), being of sound mind and disposing memory, do hereby make, publish and declare this second addendum to my Last Will and Testament, hereby including it as supplement to my Last Will and Testament and its first addendum dated January 19 and 25, respectively, by me at any time hereto for made.

A. That in the event the net income and such portion of the principal previously accumulated from the estate by my Executor or Trustee do fall as a direct result of litigation in courts or expiration of Lease Agreements, thus losing some of the property(ies), as well as a result of war, disaster or act of God or unforeseen circumstances, etc. my Executor and Trustee herein named in my last Will and Testament, Mr. Bassam H. Jawhary, is authorized by the help of the court to proportionally apply the portion of such fall in income to all my beneficiaries benefits listed in my Last Will and Testament through accounting principle and the result of such calculations shall stand as individual beneficiary benefit yearly. This adjustment shall not be contested by any and all my beneficiaries.

B. That I expressly state that this Last Will and Testament, including all its addendums are hereby IRREVOCABLE and my Executor or Trustee above named in my Last Will and Testament is also authorized to manage and administer all my real and personal properties in Liberia in good faith.

IN WITNESS WHEREOF, I, the said MILAD R. Hage, do hereto set my hand and seal in the presence of two (2) competent witnesses and in their presence do publish this instrument to be the second addendum to March 2010 and declare this instrument to be the second addendum to my Lasts Will and Testament , this 26 day of March 2010.

Signed:

MILAD R. HAGE

The foregoing instrument, consisting of this two (2) preceding type written pages, was signed, sealed, published and declared by MILAD R. Hage, the Testator, to be his second addendum to Last Will and Testament, in our presence, and we, at his request and in his presence and in the presence of each other, have hereto subscribed our names as witnesses this 26 of March 2010, in Lebanon, City of Beirut (Belt Al Chaar)

On May 7, 2010, seventeen days after the death and burial of Mr. Hage, the appellant, in his capacity as Executor of the Last Will and Testament of Mr. Hage, filed a petition in the Monthly and Probate Court for Montserrado County, praying the court to admit the Last Will and Testament of Mr. Hage to probate. The records indicate, that the seal on the Last Will and Testament of Mr. Hage was broken on April 13, 2010, and initialed by the Judge of the Monthly and Probate Court for Montserrado County, His Honor J. Vinton Holder, which is six days prior to the death of Mr. Hage and twenty-five days prior to the filing of the petition for admission of Mr. Hage's Last Will and Testament to Probate. The records further indicate per the allegations of the appellees to which there was no challenge, that at the time of the filing of the petition for admission of Mr. Hage's Last Will and Testament to probate, the appellees were in Lebanon.

On June 17, 2010, the Monthly and Probate Court for Montserado County admitted the Last Will and Testament of Mr. Hage to probate, without objection, as the appellees alleged they were still in Lebanon when the petition for admission of the will to probate was filed. Upon the appellees' return from Lebanon to Liberia, they filed an objection to the petition for probate of the will, but His Honor J. Vinton Holder denied the objection. The records show that no appeal was taken by the appellees from the ruling of the Probate Judge. However, and as stated earlier, following the ruling of the Probate Judge, the appellees filed an eleven-count motion with the Monthly and Probate Court for Montserrado County, praying

Court to exclude certain properties said to be owned by the appellees from the estate of Mr. Hage and also to have the appellant audited for the manner in which he was handling the funds of the Hage Estate. Attached to the motion were titled deeds intended to confirm or substantiate the appellees' ownership of the properties sought to be excluded from the Hage Estate. We quote the motion:

MOVANTS' MOTION

Movants in the above entitled cause of action most respectfully pray Your Honor to exclude Movants' properties from the Estate of the late Milad R. Hage and to order a comprehensive audit covering funds collected from Movants' properties, as well as funds assigned to the ECOBANK by Mr. Hage to retire obligation to said Bank, and to account to Movants who are Beneficiaries of their late husband and father's Estate, and sheweth the following factual and legal reasons to wit:

1. That the late Milad R. Rage, during his natural life acquired interest in real properties within the Republic of Liberia, which include ten (10) stores and eight (8) apartments in the City of Kakata, Margibi County, and one hundred seventy two (172) stores at Red Light, Paynesville City, Montserrado County, Republic of Liberia. Movants submit that of the one hundred seventy two (172) stores, eighty six (86) are constructed on properties owned by Movants Oumou Sirleaf-Hage, Bashir M. Hage, Rocket M. Hage, Monica M. Hage, and Nohad Hage-Menza. Copies of the title deeds covering these properties are hereto annexed in bulk as Exhibit Mir. Movants submit that these pieces of properties did not belong to Mr. Milad R. Hage during his life time and obviously he could not have died seized of them and therefore said properties cannot form part of decedent Milad R. Hage's estate. Consequently, Movants pray that their properties be stricken from decedent Milad R. Rage's estate, and be excluded from administration by Respondent Bassam Jawhary.

2. Movants further submit that the late Milad R. Hage during his natural life married Olga Hage, and the union was blessed with four (4) children, namely: Terrez G. Hage-Safi, Elie M. Rage, Tony m. Hage and Lor Hage-Azar.

3. And Movants further submit that Olga Rage predeceased Milad R. Hage, and the latter subsequently married Oumou Sirleaf-Hage, and this union is blessed with three (3) children, namely: Bashir M. Hage, Rocket M. Hage, and Monica M. Hage.

4. And Movants further submit that the records of this Court reveal that Milad R. Rage died on the 19th day of April 2010, in Beit Al-Chaar Lebanon, and was buried on the 20th day of April 2010, in his home town, Aintoura, Lebanon. Movants request Your Honor to take Judicial Notice of the various pleadings with exhibits filed in this Court in substantiation of the foregoing.

5. And Movants further submit that while they were in Aintoura, Lebanon, attending the funeral ceremonies and grieving the loss of their late husband and father, Milad R. Hage, Respondent with unusual haste, filed a petition before this Honorable Court on May 7th, 2010, not even a month after the death of the deceased, praying this Court to admit into probate what is alleged to be the Last Will and Testament of the late Milad R. Hage, despite he had not even petitioned the Court for the reading of said Will, nor had said Will been read. As proof of these facts, Movants pray Your Honor to take Judicial Notice of the pleadings and exhibits filed in these proceedings in this Court.

And Movants further submit that although they knew nothing about the presentation to this Court of the purported Last Will and Testament of decedent Milad R. Hage, because they were still in Lebanon and neither they nor anyone had objected to or challenged the purported Instrument, yet the Respondent petitioned this Court for the proving of said purported Last Will and Testament in the absence of any objections or challenge to its genuineness, thereby personally conceding the spurious nature of the Instrument, Your Honor ignored the Respondent's request for proving the Will and sua sponte ordered the Clerk of this Court to read said purported Last Will and Testament on May 13, 2013, and thereafter ordered the Clerk of Court to issue public notice to the effect that an instrument purporting to be the Last Will and Testament of the late Milad R. Hage had been duly

read in open court, and therefore all those having objections thereto may file same with the Clerk within thirty (30) days. That after the thirty (30) days the Court would proceed to hear the Petition and admit said instrument into probate, despite the petition before the Court was specifically for proving the purported Last Will and Testament, and not for admitting the purported Last Will and Testament into probate.

7. And Movants further submit that because they were without the bailiwick of the Republic of Liberia and had no knowledge and notice that an instrument purporting to be the Last Will and Testament of their late husband and father had been presented to this Court proving, not for admission into probate and subsequent registration, Movants could not and therefore did not file objections as ordered by the Court. Movants say that the period between the date Mr. Milad R. Hage died, April 19, 2010, and the date the petition was filed by Respondent before this Honorable Court praying the Court [to] admit into probate what is alleged to be the Last Will and Testament of the late Milad R. Hage, May 7, 2010, a period of eighteen (18) days is in violation of the law extant in this jurisdiction.

8. And Movants further submit that they became aware that an instrument purporting to be the Last Will and Testament of their late husband and father, Milad R. Hage, had been admitted into probate, and that Respondent had been appointed Executor of the Estate of the late Milad R. Hage upon the return to Liberia of Movants and Widow of the late Milad R. Hage, Oumou Sirleaf-Hage, on the 7th day of July, 2010, and that their bona fide real properties had been fraudulently and illegally included in the said purported Last Will and Testament, and that Respondent had been and is still stealthily, fraudulently and illegally collecting the rentals from their properties and converting same to his personal use.

9. And Movants further submit that since the appointment by this Court of the Respondent to administer what is purported to be the Estate of decedent Milad R. Hage, he has been and is still lavishly, destructively and without accountability operating the Estate as a personal entity, undoing acts of decedent Milad R. Hage, such as illegally nullifying written authorization given by the deceased to ECOBANK to collect the rental from his stores to liquidate his obligation to said Bank, which rental Respondent is personally collecting and converting to his own use, and also illegally disposing of non-perishable personal properties of the Estate.

10. And Movants further submit that in addition to Respondent's shady operation of the Estate of their late husband and father as mentioned above, Respondent is managing said Estate in manner that is inimical to Movants to the extent that decedent's widow and children are not been maintained and supported, they are not receiving their entitlements, nor are the children's school and other expenses being paid by Respondent from the huge income generated from their late husband and father's investment, while the Respondent is collecting large amounts of money from the Estate which he and his family are lavishly enjoying to the detriment, inconvenience, embarrassment and humiliation of Movants.

11. And Movants further submit that although the following stores are erected on the front, upper level of their properties: Titco (1-door) store; Hassan Diallo Business Center (1- door) store; Abu Trading Center (2-door) store; Yaya & Bros. Corporation (2-door) store; T. Cherif Enterprise (2-door) store; Roomy Bros. (2-door) store; Good Luck Hardware Center (2-door) store; T. Choithram

& Sons (2-door) store; T. Choithram & Sons Pharmacy (2- door) store; Right Choice Business Center (2-door) store; Oumar Diallo Business Center (1-door) store; Denguiravic Business (1-door) store; Century Intl Liberia Ltd. (1-door) store; Laapu Business Enterprise (1-door) store; Ibradia Business Center (1-door) store; Zota Trading (1-door) store; Ritco (2-door) store; PeeCee & Sons Inc. (2-door) store; Ravi Enterprise (1-door) store; Asata Geenot Business Center (1-door) store; M.D. Business Center (2-door) store; Mama Liberia Trading Center (2-door) store; Galaxy Trading Corporation (1-door) store; T.B. Business Center (1-door) store; Tonica Business Center (1-door) store; Bembete Business Center (1-door) store; Nadhal Business Center (1-door) store; M.D. Business Center (1-door) store; Abeer Pharmaceuticals (2-door) store; Deylal Business Center (1-door) store; Adoulk Business Center (1-door) store; Douanah Business Center (1-door) store; Hawa Business Center (1-door) store; Ma Fata Business Center (1-door) store; Trying Business Center (1-door) store. That the following stores are erected at the back level of their properties: Aminata Business Center (1-door) store; Antalvi Products (1-door) store; Massay Karama Business Center (1-door) store; Kadiatu & Son General Merchandise (1-door) store; N.N Business Center (2-door) store; Kadiatu Business Center (1-door) store; Big Ma Fanta Donzo Business Center (1-door) store; Jabateh Hga Business Center (1-door) store; S.K. Wholesale Business Center (1-door) store; N.O. Business Center (2-door) store; C.C.A. Business Center (1-door) store; Hands of God Business Center (1-door) store; So God Nice Fufu Center (1-door) store; Jehovah Business Center (1-door) store; Ma Faatu Business Center (2-door) store; Ma Teneken D.K. Business Center (1-door) store; M. Kamara Business Center (1-door) store; Jewel Center (1-door) store; Martha Business Center (1-door) store; F.K. Kemokai Business Center (1-door) store; E.C. Business Center (1-door) store; Money Exchange Local & International (1-door) store; Maximore Jewels (1-door) store; U.W. Business Center (1- door) store; United Women Business Center (3-door) store; Red Light Enterprise (1-door) store; Mawa Fofana Enterprise (1-door) store; Rose F.K. Business Center (1-door) store; F.S. Business Center (1-door) store; N.N. Business Center (1-door) store; B.N.O. Business Center (1-door) store; Dulleh Sisters Business Center (1-door) store; Dawn Business Center (1-door) store; Fatu & Sisters Business Center (1-door) store; N. Business Center (1-door) store; Bee Enterprise (1-door) store; Business Enterprise (1- door) store; Business Center (1-door) store; Discount Enterprise (1-door) store; N.O. Business Center (1-door) store; N.O. Enterprise (1-door) store; Jusu Kardia Trading (1- door) store; Sanoyea Business (1-door) store; Mother Blessing Business Center (1-door) store; Three-n-One Business Center (3-door) store; B.K. Business Center (1-door) store; Livasa Business Center (1-door) store; Makanie Kenneh Business Center (1-door) store; Westline Enterprise (2-door) store; Hawa Business Center (1-door) store; Ma Fata Business Center (1-door) store; Typing Pool (1-door) store. Movants submit that notwithstanding all of the foregoing stores are erected on their bona fide properties, as evidenced by their title deeds covering said properties annexed and marked Exhibit "Mt above to form part of this Motion, yet the Respondent herein has been and is still illegally collecting their rental and converting same to his and his family's own use.

WHEREFORE, Movants pray:

a) That their properties which form no part of decedent Milad R. Hage's Estate be stricken from the purported Last Will and Testament of the late Milad R. Hage and be excluded from his Estate which is currently under administration by Respondent.

b) That the Respondent be audited to determine the total amount he has illegally collected from Movants' properties, and that he be required to forthwith refund to Movants the total amount he has received from the tenants occupying Movants properties.

c) That Respondent be required to give an accurate account of his activities since Letters Testamentary was issued to him, and give a full account of all funds illegally collected by him which should have been paid to ECOBANK to extinguish decedent Milad R. Hage's indebtedness to said Bank; and

d) That Your Honor will grant unto Petitioners all other relief in the premises as justice, right and equity demand.

RESPECTFULLY SUBMITTED,
MOVANTS.

BY AND THRU THEIR LEGAL COUNSEL:

SHERMAN & SHERMAN INC.
R. FOLE SHERMAN LAW BUILDING
17TH STREET & CHEESEMAN AVENUE
SINKOR, MONROVIA, LIBERIA

J. JOHNNY MOMOH
COUNSELLOR-AT-LAW

G. MOSES PAEGAR
COUNSELLOR-AT-LAW

To the above quoted motion, the appellant on May 30, 2011, filed a twenty-four Count resistance, praying the Monthly and Probate Court for Montserrado County to deny and dismiss said motion. We quote verbatim the appellant's resistance to appellees' motion, as follows:

1. That because Respondent says that as to the caption of the so called Motion, Respondent prays for its dismissal along with the entire averments in that, the individual purporting to be an Attorney-in-Fact for Movants Nohad Hage-Menza, Tony Hage is nothing but a trouble maker and an instigator who lacks capacity to represent the said Movant in that there is no evidence to show the authority appointing him as such and therefore, he lacks the capacity and legal standing to be represented.

2. That because as to count two above and still with respect to the caption of this Motion, Respondent says that same is a fit subject for dismissal in that the Respondent referred to in the said Motion serves as a representative of an estate and more so, there is no Petition before this court for proving a Will of the late Milad R. Hage and because Respondent being continuously referred to by the Movant as Bassam H. Jawhary is more in the nature of private capacity and therefore, this Motion not identifying Mr. Jawhary in a representative capacity as an Executor for the Testate Estate of the late Milad R. Hage, makes the entire Motion vague and of no legal substance.

3. That because as to count one of Movants' Motion, Respondent says that indeed while its true that the late Milad R. Hage acquired interest in Real Properties, the properties referred to be owned by Ms. Oumou Sirleaf and her children were bought by the decedent Milad R. Hage and for the purpose of convenience, he found it prudent to have same placed in the name of his children and his children's mother, Ms. Oumou Sirleaf owing to the salient fact [that] under our Liberian Constitution, a non negro is forbidden from owning real property in Liberia.

4. That still as to count three above, Respondent says that he challenges the Movant to prove him wrong that Ms. Sirleaf or her children ever inherited property (ies) from any other source which the late Milad R. Hage acquired. Still further, Respondent says that because these properties, although placed in the names of his children had with Ms. Sirleaf and her very self were legally leased from them for the purpose of investment over a long period which effective formed a significant part of the Testate Estate of Milad R. Hage.

5. That because Respondent says that still as to count four above, and in respect to one of the Movants' Motion, the Movant has conceded the fact that the late Milad R. Hage was never seized of any Real Property in the Republic of Liberia but rather had a Leasehold interest in properties, and as such, since there is no showing that the terms and conditions of the leasehold interest has been violated in keeping with the terms and conditions of the lease, it is impracticable that this Monthly and Probate Court will have any justifiable ground to sua sponte sever the estate and exclude those legally and well-grounded leasehold properties making up the Testate Estate of the late Milad R. Hage to be destroyed.

6. That because Respondent says that in the absence of any wrongdoing by the executor, our law provides no legal basis for the exclusion of a party/beneficiary from a legally probated and executed Will. The fact that all of the necessary requirements associated with a Will were prudently and effectively done with all the full acquiesce [nce] and acknowledgment of the Movant Ms. Oumou Sirleaf as can be more fully attested to by documentary evidence pointing to such fact, Respondent sees no other legal [basis] as is for an exclusion; and as such, this Motion along with all of its averments are fit subject to be thrown in the dust bin of this Honorable Court.

7. That still as to count six above, Respondent says that assuming without admitting to any agreement to sever and/or exclude the Movant from the Testate Estate, same would only legally be accomplished under the provision of Chapter 4 subsection 4.1(3) at page 582 of our Decedents & Estate Law of Volume II. This provision is quoted as saying thus:

Property applicable to elective share. For the purposes of this section, only the real and personal estate of which the decedent died seized is applicable to the elective share of the surviving spouse.

By this provision herein above quoted, since the decedent, as admitted by the Movant, the late Milad R. Hage never died seized of any real property within the Republic of Liberia, and for the purpose of even recognizing for a moment that Ms. Oumou Sirleaf was legally and statutorily married to the decedent prior to his demise, the only consideration would be that she gets lump sum of the interest after all of the liabilities and other debts are settled and at that stage the resultant will be worked out to satisfy her request in keeping with the provision of the statute.

8. That because as to count two of Movants' Motion, Respondent concedes the fact that the decedent, Milad R. Hage was legally married to Olga and that their union was blessed with four children, but the contrary is that Ms. Oumou Sirleaf was never married to Mr. Hage. She was a concubine to the late Milad R. Hage and that indeed she bore three issues while in relationship with him. This assertion is backed by the marry certificate of the 19th day of September, 2009 which she proffered to one of her pleadings. Investigation to establish this fact by the NBI has revealed the fact that the entire transaction was a scam marred by high degree of FRAUD: Under the theory of law as relates to fraud, says that a fraud in one is a fraud in all. What a 4-1-97.

9. That as to count 4 of Movant's Motion, Respondent interposes no traverse.

10. That because as to count 5 of Movants' Motion, Respondent says that while it is true that Milad R. Hage died in Aintoura, Lebanon, indeed the Movants attended the funeral thereat but again the contrary is that Ms. Oumou Sirleaf was, during the entire process of the funeral rite, in a joyful mood, evidence by photograph taken suggest this fact which Respondent gives notice to produce during trial if any.

11. That still as to count ten above, Respondent says that count five of said motion is blatantly misleading and a fabrication to smear the good reputation of not only the Respondent/executor but the Probate Court in that, the process of the Will was done in keeping with law with all of the necessary requirements associated therewith met. In fact, Ms. Oumou Sirleaf, along with all of the children, to include those of the Liberian and Lebanese were duly informed via email and other electronic means. But assuming again without admitting to the veracity as to whether or not the Will was executed in the manner referred to by the Movants, same is moot and this court should not accord it any much credence.

12. That because as to counts six, seven and eight of the Movants' Motion, Respondent incorporates same in counts ten and eleven of his Returns since all present one and the same averments.

13. That still as to count 9 of Movants' Motion, Respondent says that said count is misleading and disappointing in that the Estate is prudently managed to the expectation and intent of the Will and this Court. The only basis for the continuous legal battle initiated by Ms. Oumou Sirleaf is to allow her turn over the properties over to her crony, Tony Hage and because Respondent is not opening up to allow this ugly and devilish intention to materialize is all the reason. Least Movants forget that in term of the estate's assets being lavished, same can be attributed to the Movant when on several occasion, she Ms. Oumou Sirleaf and he so called Lebanese Investor, Tony Hage proceeded to the tenants of the Estate and duped the tenants in having them surrender to them the total amount of More than United States Dollars Twenty thousand (US\$20,000.00) under a 4-1-9 scheme. Attached hereunto for your easy reference are copies of few of the many illegal transactions affected by Ms. Oumou Sirleaf and her crony, Tony Hage.

14. That because as to count ten of Movants' Motion, Respondent maintains that at no time he has attempted by any imagination to exclude any of the named beneficiaries from receiving their just allocation as per the Will, but that it has and is the continuous negative behavior of the Movants to see the Estate deatroyed by continuously instituting lawsuits against the Executor. That fact is that instituting legal actions against the Estate she claims to benefit from will lead her nowhere and that

the Respondent shall do all in his power as the Executor to defend and protect that which has been named by the Testator and sanctioned by this Honorable Court to maintain. That the sooner the Movants realize that she and her children have an interest to ensure the viability of what was labored so hard for by the late Milad R. Hage, the sooner she will disengage herself from those evil geniuses who are continuously misleading her to behave the way she does; the better she will realize what she and others deserve under her children father's Will.

15. That as to respect to the assertion the Movants including her children are not being supported by the Respondent out of proceeds from the Estate, same is a misrepresentation of the fact in that Ms. Oumou Sirleaf and her children have received enormous support from the estate from remittances sent her and the children netting almost Fifty Thousand United States Dollars (US\$50,000.00). Besides, Oumou has, and in conjunction with her crony, Tony Hage, by tricks and deceptions, made between the period to more than Twenty Thousand United States Dollars out of the Estate through the use of fraud, misrepresentation and theft. Therefore, it is inconceivable that she will make such a diabolical and unfortunate representation against the Respondent that she is being denied proceeds from the Estate. Attached as RI-are copies of remittances and the species of documentations the Co-informant and Tony Hage have received and amount they have illegally made away by tricks and artifice.

16. That still as to count 14 above, Respondent contends that he is and has never lost sight of his obligation under the Will; but that he finds himself under attack by the same self-beneficiary of the Estate of fight[ing] him through continuous litigations and other negative acts just to ensure that the Estate not [does] exist. A case in point is that through the very instrumentality of Ms. Oumou and her cohorts have filed more than ten suits against the Estate she intends to benefit from. The Will has provided that the Executor settles all obligations to banks and other institutions before settling to the beneficiaries. While this process is ongoing, the supposed beneficiaries are on one hand filing suits on a daily basis against the very Estate. Least Movants forget that the decedent left pending lawsuits prior to his death which also concern the Estate and it is the obligation of the Respondent/Executor to delve into.

17. That because Respondent says that with respect to accounting, he had never shy away from such undertaking but urge Ms. Sirleaf to ceasefire and allow reasons to prevail. To show Respondent good faith and sound financial dealings with respect to his stewardship, he has, through the Monthly & Probate Court requested that EcoBank submits a comprehensive financial bank statement to show rent receipts to establish all that the EcoBank has received from tenants of the Estate. This has been thwarted again by the Movants who have connived with the EcoBank to the unmeritorious suit against the Estate, thereby making this intention unachievable. The tune of the Respondent is in no way a sign of defeat but rather a good faith intention aimed at ensuring that all, including Oumou Sirleaf, her children and the Lebanese children benefit from their father's labor.

18. That as to count 11 of Movants' Motion, Respondent says with respect to the stores as spelled out in said count, same present no much issue but maintains that those stores belong to the Estate and not to the beneficiaries in particular. Assuming without admitting that Ms. Oumou Sirleaf and the children have properties at Red Light, Paynesville, subject of part of the Testate Estate of Milad R. Hage, the truth is that it was the late Milad R. Hage who bought the entire properties, but due to the

provision under our Constitution which forbids a non negro from acquiring real properties in Liberia, caused him to place these properties in the names of Ms. Oumou and the children primarily for the purpose of convenience. He then leased them from Ms. Sirleaf and his children through a legal transaction considering all of the legal requirements. This goes to say that taking it to the extreme, what Ms. Oumou and the children of the late Milad R. Hage are entitled to, on a technical note, is the rental and the allotments under the lease if and only if she Ms. Oumou and her crony, Tony Hage refrain from filing unmeritorious lawsuits against her very interests.

19. Respondent continues and says that because of his status as Executor, and whether or not Ms. Oumou Sirleaf considers him in said capacity, he is under legal obligation notwithstanding the Will, to do all acts that are legally prudent and allowed to ensure that the children left by his Principal (Milad R. Hage) are protected and afforded the kind of education that he would have provided for them had he been alive.

20. That as to the Prayer of the Movants, Respondent says that same should be dismissed and deny in their entirety in that since the decedent was never seized of any real property within the Republic of Liberia but rather leasehold interest, any exclusion without tampering with the existence of the dead man's Will should be in conformity with Chapter 4 of the Decedents & Estate Law of Liberia as quoted herein above, as this will afford this Court to do a full accounting of the estate, less all liabilities and the resultants there from, will be applied against the 1/3 interest in a one shot transaction. This process will then exclude the Movant forever and the estate will continue to remain in full force and effect in keeping with the Will.

21. That because Respondent says that two of the Firms with their individual counsel in persons of Counselor Emmanuel J. Berry and the Sherman & Sherman Law Firms representations be stricken from these proceedings in that, Counselor J. Emmanuel Berry represented the decedent Milad R. Hage prior to his death for more than thirty five years and as such, he lacks the moral rectitude and capacity to announce any representation for and on behalf of the Movants against the Estate of the late Milad R. Hage. Allowing him or the Sherman & Sherman Law Firm to represent the beneficiaries against the testate estate of the late Milad R. Hage will be in violation of Rules 8 and 9 of the Code for the Moral and Ethical Conduct of Lawyers. Excerpt of these provisions are quoted thus:

Rule 8: 'It is the duty of the lawyer at the time of retainer to disclose to the client all of the circumstances of his relations to the parties, if there be any, and any interest in or connection with the controversy, which might influence the client in the selection of counsel. It is unprofessional to represent conflicting interests.

Rule 9: Within the meaning of this Rule, a lawyer represents conflicting interests when, in behalf of one client, it is his duty to contend for that which duty to another client requires him to oppose. The obligation to represent the client with undivided fidelity, and not to divulge his secrets or confidences, forbids also the subsequent acceptance of retainers or employment from others in matters adversely affecting any interest of the client with respect to which confidence has been reposed.

22. That still as to count nineteen above, Respondent contends that because the Berry Law Office, represented by Counselor J. Emmanuel Berry represented the Decedent, Milad R. Hage for more than thirty five (35) years with respect to the estate of the decedent as evidenced by a self-explanatory

communication, from Ms. Oumou Sirleaf to Counselor J. Johnny Momoh, dated March 18, 2011, clearly points to a conflict of interests, which the provisions of Rules 8 & 9 attempt to avoid. Attached for Your Honor's easy reference, is a copy of said communication from Ms. Oumou Sirleaf.

23. That with respect to the Sherman & Sherman Law Firm, this law firm is similarly situated. There are overwhelming evidence that this Firm and its counsel represented the decedent, Milad R. Hage as well as the Testate Estate of Milad R. Hage. Attached are few of the species of evidence to establish this double deal/conflict of interest being practiced against the Respondent by the Sherman & Sherman Law Firm.

24. That Respondent denies any and all allegations and assertions as contained in Movants' Motion to exclude not made a special case for traverse.

Wherefore and in view of the foregoing, Respondent prays for the denial and dismissal with prejudice of Movants' Motion to Exclude in that:

- a. The said Motion is filed in bad faith with the prime aim to disintegrate the Testate Estate of the late Milad R. Hage.
- b. One of the Movants, Tony Hage, lacks legal capacity to file in a representative capacity for and on behalf of any of the parties as he has failed to proffer any authority given him to act in said capacity and moreover, he is an indicttee in a crime of Theft of Property currently pending before the Paynesville Magisterial Court.

Pleadings having rested, the Judge for the Monthly and Probate Court for Montserrado County, His Honor J. Vinton Holder, entertained arguments on the issues raised in the pleadings and, on August, 25, 2011, ruled on the appellees' motion to exclude their properties from the estate of the late Milad R. Hage and to order a comprehensive audit of funds collected by the appellant from their properties, as well as funds assigned to Ecobank by Mr. Rage to retire his obligation to Ecobank. We quote the Judges's ruling:

Mr. Tony N. Rage, acting on behalf of Madam Omu Sirleaf Rage, Bashir M. Rage, Roeckel Hage, Monica N. Hage, and Nohad Rage, all of the City of Monrovia and the U.S.A., respectively, by and thru their legal counsel, The David A.B. Jallah Law Firm, The J. Emmanuel Berry Law Firm, and The Sherman & Sherman Inc. filed an eleven count motion to exclude movant's properties from the estate of the late Milad R. Rage and to order an audit of the respondent, the executor of the Testate Estate of the late Milad R. Hage.

In their motion, the movants contended that Mr. Milad R. Hage, the late, acquired properties [and] interests, including leasehold rights, in ten stores and eight apartments in Kakata, Margibi County, and 172 stores in the City of Paynesville, at Red Light. Movants further contended that pieces of properties do not belong to the respondent or the Testate Estate of the late Milad R. Hage as he [did not] acquire and could not acquire any real properties since indeed he was a Lebanese national; and therefore, the deceased could not obviously have died seized of such properties. Therefore, said properties cannot constitute part and parcel of the estate. Movants therefore prayed court for the striking of the said properties from the said estate, and same should be excluded from the testate administration of the late Milad Hage Estate.

Movants further contended that while they were in Lebanon attending the funeral ceremony of their late husband and father, Milad R. Hage, the respondent, with unusual haste and disdain, filed a petition before this court on May 7, 2010, not even a month after the death of their loved husband and father, praying the court for admission into probate of an instrument alleged to be the Last Will and Testament of the late Milad R. Hage despite the respondent's not filing a petition for the reading of the said Instrument/Will, or has said instrument read in any court in the Republic of Liberia.

In counts 6, 7, and 8 of movants' motion, they submitted that although they knew nothing of the petition of the said instrument purporting to be the Last Will and Testament of their late father and husband, in their absence from the Republic, as they were at the time in Lebanon, they were prevented from raising any objections to the said Will. Movants also contended that since the appointment of the respondent/executor, respondent is instructively and without any accountability operating the said estate as a personal entity, undoing acts of the deceased such as illegally nullifying written authorization given the said bank such as the Ecobank which rental respondent is personally collecting and converting into his own use, among others.

In resisting the said motion, the respondent filed a 24 count resistance along with a motion to dismiss and extract.

Respondent further contended that the movant [representative], Tony N. Hage, lacks the legal capacity to institute this act because he proffered no authority before this court to enable him to file for and on behalf of Movants, Oumou and her children. Respondent further maintained that throughout the law firms named in the said action as legal counsel for movants should be stricken from further representations. That these two law firms, namely the law office of J. Emmanuel Berry and Sherman & Sherman Inc., both represented the deceased and cannot now represent any one in the interest of the deceased, especially so against this estate.

The Respondent, further traversing the averments contained in movants' motion, contended, inter-alia, that this court should deny and dismiss the call by movant to have the said properties excluded from the estate of the late Milad R. Hage, in that the late Hage died seized of no real property in the Republic of Liberia but rather the deceased had leasehold rights for properties subject of these litigations. Respondent further maintained that any position [which] tends to exclude any part of the estate will lead to the disintegration of the testate estate, in contravention of the Decedent Estate Law, chapter 4, Sub-section 4.1, which law states "Property applicable to elective share. For the purposes of this section, only the real and personal estate of which the decedent died seized is applicable to the elective share of the surviving spouse.

Respondent further maintained that hence, the decedent did not die seized of any property within the Republic of Liberia [but] will have an interest in leasehold right in the portion leased by the decedent from the movants, Madam Oumou and her children. It welcomed the call for an audit into the affairs of the estate but said such audit would include the Ecobank that has the assignment of lease from the tenants of the Testate Estate of the late Milad R. Hage, owing to debts and obligations of the deceased with the bank.

In support to the movants, Madam Oumou and her children, respondent repeated and maintained that the estate has indeed [provided] support in the form of cash to the widow and her children and exhibited e-mails and other [records of] expenses.

On the issue of the contention of movants that the said Will was not properly admitted in the court and that the widow and her children were never part and parcel of the probate process, and as such they were denied their right to contest, respondent vehemently maintained that as to this contention, being raised at this stage by the movants, the widow and her children, along with the Lebanese children, were duly informed through e-mail and other electronic means, and further to that, the probate was with the consent and acquiescence of all of them, evidenced by the fact that Oumou requested that her mother, Madam Watta, and one Mr. Cooper Yellabe and his uncle, Mr. Sam Jalloh, facilitate the process, and that subsequent to that Madam Oumou appeared before this Honourable Court and acknowledge[d] the executor of the Testate Estate of her late husband, Mr. Milad R. Hage.

This court carefully considered the various positions of both parties and proceeded to hear the motion to exclude.

When this case was called for the hearing of said motion, one of counsels for respondent resisted the representation which led the said counsel to file a submission to that effect.

This court, in its wisdom, advised the said counsel to withdraw from further representation of the movants to avoid undue delay and proceeded to hear the motion on its merit. The motion was duly assigned for hearing. Both counsels were allowed to argue their respective positions and ruling was reserved.

Having listened to oral arguments, and having taken into consideration the law citations relied upon by both parties, this court believes that there are four issues to be determined by this court.

1. Whether or not under the circumstances of this case the motion to exclude a beneficiary, especially so a widow, from a testate estate is applicable wherein the properties to be excluded is [sic] neither a real or personal, as required by section 4, sub-section 4.1, sub-section 3.
2. Whether or not the probate of the Will of Milad R. Hage was done consistent with the Decedent Estates Law and with the acquiescence of the widow, Madam Oumou Sirleaf?
3. Whether or not this court has the legal authority to overturn or reverse its earlier decision out of term time, that is to say, whether or not a decision made in 2010 can be reversed out of term time in 2011.

This court shall proceed to address these issues in a reverse order, starting with whether or not this court has legal authority to overturn its earlier decision after the term of that decision has lapsed. Recourse to 10 LLR, page 249, in the case Elisha Williams, Legatee under the Will of the late Fisch, Appellant, vs. Ellen A. Fisch, Sole Executrix, Legatee and Remainderman of the said estate, Appellee, syllable three, also texted at page 254, and syllable one and two, in which the Supreme Court stated: The probate court is without power to revoke a probate of a will which has been probated in prior term of court.

2. A beneficiary of a Will who has accepted benefits under the Will is estopped from to contest the Will. Under this law, this court cannot revoke the said Will under the circumstances as to do so will be in contravention to said law. As the records in these proceedings show that the said Will was admitted into probate on June 17, 2010, after same had been read and publications made, after which our records show that the said Will was admitted into probate on June 17, 2010, after same had been read and publications made, after which our records show that no objection was filed with the clerk of this court in keeping with the Decedents Estates Law. This court then proceeded to have the said Will proved. Hence, to revoke same would be usurping of the Honorable [Supreme] Court as this court lacks the jurisdiction and legal authority to revoke same.

As to the next issue, whether or not a beneficiary who has received benefits under a Will can question or challenge its validity? This court takes keen judicial notice of the pleadings submitted by respondents in which respondents exhibited to the effect that indeed movant and her children received remittance from the respondent. Respondent exhibited slips bearing various amounts which facts cannot be denied by the movants. According to respondent, movants have received money transferred, by of money transfer, [in the amount of] 47,440.00USD, and from some of the stores, including Floye Business, 11,000.00USD, Winners enterprise, 6,000.00USD, Luck Pharmacy, 3,000.00USD, Cosnos, 5,000.00USD, Mukesh, 8,000.00USD, and that movant/Oumou refused to receive the additional cash. Respondent was left with no other alternative but to make payment with the probate court, through the office of the sheriff, in the amount of 4,000.00USD, making it a total of 84,440.00USD made available to the widow from the proceeds.

This court, in its wisdom, advised the said counsel to withdraw from further representation of the movants to avoid undue duly and proceeded to hear the motion on its merit. The motion was duly assigned for hearing. Both counsels were allowed to argue their respective positions and ruling was reserved.

Having listened to oral arguments, and having taken into consideration the law citations relied upon by both parties, this court believes that there are four issues to be determined by this court.

1. Whether or not under the circumstances of this case the motion to exclude a beneficiary, especially so a widow, from a testate estate is applicable wherein the properties to be excluded is [sic] neither a real or personal, as required by section 4, sub-section 4.1, sub-section 3.
2. Whether or not the probation of the Will of Milad R. Hage was done consistent with the Decedent Estates Law and with the acquiescence of the widow, Madam Omou Sirleaf?
3. Whether or not this court has the legal authority to overturn or reverse its earlier decision out of term time, that is to say, whether or not a decision made in 2010 can be reversed out of term time in 2011.

This court shall proceed to address these issues in a reverse order, starting with whether or not this court has legal authority to overturn its earlier decision after the term of that decision has lapsed. Recourse to 10 LLR, page 249, in the case Elisha Williams, Legatee under the Will of the late Fisch, Appellant, vs. Ellen A. Fisch, Sole Executrix, Legatee and Remainderman of the said estate, Appellee, syllable three, also texted at page 254, and syllable one and two, in which the Supreme Court stated:

The probate court is without power to revoke a probate of a will which has been probated in prior term of court.

2. A beneficiary of a Will who has accepted benefits under the Will is estopped from to contest the Will. Under this law, this court cannot revoke the said Will under the circumstances as to do so will be in contravention to said law. As the records in these proceedings show that the said Will was admitted into probate on June 17, 2010, after same had been read and publications made, after which our records show that the said Will was admitted into probate on June 17, 2010, after same had been read and publications made, after which our records show that no objection was filed with the clerk of this court in keeping with the Decedents Estates Law. This court then proceeded to have the said Will proved. Hence, to revoke same would be usurping of the Honorable [Supreme] Court as this court lacks the jurisdiction and legal authority to revoke same.

As to the next issue, whether or not a beneficiary who has received benefits under a Will can question or challenge its validity? This court takes keen judicial notice of the pleadings submitted by respondents in which respondents exhibited to the effect that indeed movant and her children received remittance from the respondent. Respondent exhibited slips bearing various amounts which facts cannot be denied by the movants. According to respondent, movants have received money transferred, by of money transfer, [in the amount of] 47,440.00USD, and from some of the stores, including Floye Business, 11,000.00USD, Winners enterprise, 6,000.00USD, Luck Pharmacy, 3,000.00USD, Cosnos, 5,000.00USD, Mukesh, 8,000.00USD, and that movant/Oumou refused to receive the additional cash. Respondent was left with no other alternative but to make payment with the probate court, through the office of the sheriff, in the amount of 4,000.00USD, making it a total of 84,440.00USD made available to the widow from the proceeds.

As to the next issue, whether or not the probate of the said Will was done in consistence of the law and by the acquaintances [sic] of Madam Oumou Sirleaf, this court must again revert to its records which show that the said instrument was duly submitted to this court on May 7, 2010 which process was done in open court in the presence of the respondent and members of the family of the movants, including Mrs. Hage's mother, Mr. Cooper Yalleba, and Mr. Jalloh, and a regular hearing was duly heard and the requirement of the statutes having been met, this court ruled admitting into probate the instrument as the Last Will and Testament of the late Milad R. Hage. Moreover, the widow did appear before the court, along with the executor and asked some questions about the signature which, according to her, was not on the Will that she knew. This court having clarified to her that the only signature appearing there, apart from the signatures appearing on the original, was that of the presiding judge as is that said instrument is initialed when it is called for probate. This court also observed that the respondent prayed for and obtained a clerk's certificate attesting and confirming said facts. Again this certificate was not being challenged nor denied by the movants. Under our practice of law, what is not denied is deemed to be true and correct.

As to the last issue of whether or not the motion to exclude a beneficiary, especially a widow from a testate estate is applicable wherein the properties to be excluded were never willed, or rather the provision of section 4, sub-section 4.1 (sub-section 3), this question, in the mind of this court, can also be answered in the negative. The movants having admitted to several counts in this motion that the deceased died seized of no real property but during his natural life he acquired interest in real

property in the Republic of Liberia, but during argument it was brought to the attention of this court that the late Milad R. Hage had several stores in Kakata, Margibi County, and Paynesville, Red Light, respectively, which he acquired through leasehold. Respondent exhibited several leases between movants and the deceased. In the face of these leases, this court believes that the party to the properties leased, makes it difficult to think that the said property is a part and parcel of his properties, which movants claimed that he died seized of and that respondent is administering. The Will reverses no real property to anyone but rather allocates one to his children and to his widow monies generated from said leasehold. The Will provides that 50,000.00USD goes to his widow and all his four Liberian children, 50,000.00 each; and his Lebanese children, Ellie M. Hage, Tony M. Hage, are entitled to 24,000.00USD each, while Terrez G. Safi and Lor C. Azar, 12,000.00USD, all to be paid from the net income and portion of the said principal at any time, and from time to time for education, health, support, comfort, and welfare of the Lebanese children residing in Lebanon and America, respectively, as listed below, yearly from the net income accumulated from the estate by the trustee. Nowhere in his Will was a piece of property willed to anyone and as such how can same be excluded from the said Will? This court believes that what movants actually intend is to cleverly have this court set aside [and] cancel the said [Will]. This court lacks the authority to do so. This court says that an interest in a leasehold is not exactly an interest in real property. This court believes that if it was a case in which the property[ies] referred to were not encumbered by a leasehold right between the same parties, then in such a case a decision could be made to exclude. To do so under the circumstances will run contrary to law.

This court observed keenly during argument in the said motion the issue of capacity raised as to the capacity of the movants [representative], that is to say, Tony Hage as [the] legal representative of the movants and there being no power of attorney to do so, the said motion should be denied. Movants told court that the Tony Hage referred to in the movants' motion is the son of the deceased and not the other Tony Hage made reference to. This court observed that the Tony Hage referred to in this case is named in the subject Will as one of the beneficiary (son) and is not in the Republic of Liberia. Therefore, this court wonders how an attorney-in-fact who resides abroad could file an action before a court in the Republic of Liberia for and on behalf of the beneficiaries who are in Liberia. This makes it difficult for this court to agree with the movants. Hence, the said motion cannot be sustained in its totality.

Wherefore, and in view of all the circumstances in these proceedings and the laws cited, this court is of the position that the movants indeed lack legal capacity to bring this suit as the movants' representative is without the bailiwick of this court, has not appeared, and that the properties sought to be excluded are somehow encumbered. Therefore, the said motion is hereby denied in part, that is to say, the portion of the motion to exclude is hereby denied and that which has to do with the audit, which the respondent interposed no object [to], ordered to file a verified inventory of all that constitute said Estate and a comprehensive report to this court in 30 days, after which both parties will be cited to have a suitable accounting firm commissioned to have the said report, along with all the operation of the executor audited. This court having been duly informed that Ecobank has an assignment on the basis of financial obligations of the deceased to collect rent from the tenants of this estate which the deceased was liable to at the time of his death, they are also to be ordered to file a full financial report/accounting from all the rentals collected from this Estate so far, so that the

said reports or financial reports may also form part of this audit and that the cost of said audit will be borne by the estate. And [it] is hereby so ordered. Matter suspended.

Given under my hand and seal this

25 day of August A.D. 2011

J. Vinton Holder

JUDGE, PROBATE COURT, MONT. CO

As stated earlier, both parties announced exceptions to the above-quoted ruling of the Probate Judge. Counsel for the appellees/movants excepted to the portion of the trial judge's ruling denying the exclusion of appellees/movants' properties from the estate of Mr. Hage and gave notice that the appellees/movants would take advantage of the statutes controlling, if need be. The exception was noted by the Probate Judge. Thereafter, counsel for the appellant/respondent excepted to the portion of the judge's ruling ordering the audit of the appellant/respondent. That exception was also noted. However, neither party took any steps to effect an appeal to this Court; and neither party sought a remedial writ from this Court through the Justice presiding in Chambers, immediately following the judge's ruling. Instead, it was more than eight months after the above-quoted ruling was entered, that the appellees, movants in the Monthly and Probate Court, filed a petition for a writ of prohibition against the Probate Court Judge and the appellant, respondent in the Monthly and Probate Court. We quote the eight-count petition:

1. That petitioners filed a motion to exclude certain properties from the estate of the Late Mr. Milad R. Hage and to order the audit of Mr. Bassam H. Jawhary handling of the estate funds. In petitioners' petition, petitioners averred as follows:

2. That the late Milad R. Hage, during his natural life acquired personal properties and interest in real properties within the Republic of Liberia, which include ten (10) stores and eight apartments thereon, and one hundred seventy-two (172) stores situated, lying and being in Kakata, Margibi County, and at the Red Light, Paynesville City, Montserrado County, respectfully. Petitioners submit that of the referenced one hundred seventy-two (172) stores, eighty-six (86) are constructed on property owned by Movants Oumou Sirleaf- Hage and her children, co-petitioners Bashir M. Hage, Rocket M. Hage, Monica M. Rage, and Nohad Hage-Menza. Petitioners submit that these properties did not belong to Mr. Milad R. Hage during his life time and obviously he could not have died seized of them, and therefore said properties cannot form part of decedent Milad R. Hage's Estate. Copy of the referenced motion to exclude certain properties from the Estate of the late Milad R. Hage, to which is annexed the deeds covering petitioners' properties and to order the audit of Bassam H. Jawhary's handling of the Estate's funds is hereto attached and marked Exhibit A to form part of this petition. Petitioners say that the list of individuals and businesses occupying their properties is included in paragraph 11 of their motion to exclude.

3. Petitioners say further that decedent Milad R. Hage, their husband and father died on the 19th day of April, 2010, in Beit Al-Chaar, Lebanon, and was buried on April 20, 2010, in his home town, Aintoura, Lebanon.

4. That while the petitioners were in Aintoura, Lebanon, attending the funeral ceremonies and grieving the loss of their late husband and father, Milad R. Rage, co-respondent Bassam H. Jawhary filed a petition before the Monthly & Probate Court for Montserrado County on the 7th day of May, 2010, praying the Court to admit into probate what is alleged to be the Last Will and Testament of the late Milad R. Hage. A copy of said petition is also attached to form part of this petition.

5. Petitioners say that following the filing of the petition for probate of the Last Will and Testament, co-respondent Bassam Jawhary filed another Petition in the Monthly & Probate Court for proving of the purported Last Will and Testament of the late Milad R. Hage. His Honor, respondent J. Vinton Holder, ordered the clerk to read said purported Last Will and Testament on May 13, 2010, despite no petition for the Will had been filed; thereafter respondent Judge Holder ordered the Clerk of Court to issue public notice to the effect that an instrument purporting to be the Last Will and Testament of the late Milad R. Hage had been duly read in open court, and therefore all persons having objection(s) thereto may file same within thirty (30) days, after which the court would proceed to hear the petition and admit said instrument into probate, and that failure on the part of anyone having objections thereto to so do, the court would have no alternative but to admit into probate the said instrument. Petitioners submit that because they were without the bailiwick of the Republic of Liberia they had no knowledge and notice that an instrument purporting to be the Last Will and testament of their late husband and father had been presented to the probate court in Liberia for admission into probate and to be subsequently registered, the petitioners could not, and therefore did not file any objection as ordered by the Monthly and Probate Court.

6. Petitioners submit that they became aware that an instrument purporting to be the Last Will and Testament of their late husband and father Milad R. Rage, had been admitted into probate and that co-respondent Bassam Jawhary had been appointed Executor of the Estate of the late Milad R. Hage upon the return to Liberia of Petitioner Oumou Sirleaf- Rage, Widow of the late Milad R. Hage on July 7, 2010.

7. That assuming, without admitting, that the instrument purporting to be the Last Will and Testament of their late husband and father Milad R. Hage were genuine and that Letters Testamentary were legally issued co-respondent Bassam H. Jawhary, same could not cloth[e] him with the authority to administer properties which do not belong to the Estate.

8. That the motion to exclude was assigned for hearing and same was argued along with the resistance thereto and thereafter the co-respondent judge entered a ruling in which he denied the motion on [the] ground that the decedent had leasehold rights to the property. This ruling was erroneous as the respondent did not exhibit any lease agreement to establish the rights of the decedent to the properties in question and despite the fact that the movants, petitioners herein, had exhibited their deeds establishing their ownership to the properties. Attached as exhibit "B" is the ruling of the co-respondent Judge, J. Vinton Holder.

Wherefore and in view of the foregoing facts, circumstances, and law controlling, petitioners pray Your Honor to issue the writ of prohibition against co-respondent Judge, J. Vinton Holder, reversing his illegal and erroneous ruling denying petitioners' motion to exclude movants' (petitioners herein) properties from the estate of the late Milad R. Hage and to issue an order excluding petitioners'

properties as listed in the motion, attached hereto, and to set a date and time, at the convenience of Your Honor, for the co-respondent judge to appear and show cause, if any, why his ruling on the motion to exclude petitioners' property should not be set aside, and thereafter issue the alternative writ; hear same, and then grant the peremptory writ. Petitioners also pray that in the interim, an intermediate order be sent to the co-respondent judge, ordering him to immediately exclude those properties owned by the petitioners from the deceased estate and have same forthwith turned over to petitioners. Petitioners also pray that Your Honor grants them any other and further relief as Your Honor may deem just, legal, and equitable in the premises.

The petition for a writ of prohibition was filed with the Clerk of this Court on April 4, 2012 and venued before His Honor Justice Kabineh M. Ja'neh then presiding in Chambers. Justice Ja'neh cited the parties to a series of conferences and issued a number of orders to the Monthly and Probate Court for Montserrado County, without issuing the alternative writ the appellees/petitioners had prayed for. Justice Ja'neh then ordered the Clerk of the Supreme Court to inform the Monthly and Probate Court as follows:

April 23, 2012

Mrs. Martha B. Henries

Clerk

Supreme Court of Liberia

Madam Clerk:

Please inform the co-respondent judge as follows:

In light of the disagreement between the parties, relating both to the exact amounts collected in rental payments to the Hage Estate as well as to persons who allegedly have made rental collections in the name of the Hage Estate or otherwise, for the period June 17, 2010 up to April 23, 2012, resulting in non-compliance, with Item No. 4 on Sheets 4 & 5 of the "Will", the co-respondent judge is instructed to order forthwith the conduct of an audit to determine all rental collections made to said Hage Estate for the said period (June 17, 2010 and April 23, 2012).

The co-respondent judge is instructed to have recognized auditing firm conduct the audit exercise covering the period herein stated and report to the probate court on or before May 30, 2012. Pending the submission of the audit report and in order to protect the various interests in the Hage Estate, especially the upkeep of the widow and children, the correspondent judge is further instructed to suspend any and all collections of rentals henceforth by any and all other persons during the period of the audit and pending a final conference by the Justice in Chambers on the audit report to be submitted. The curator, Monthly and Probate Court of Montserrado County shall be authorized to collect all rental payments due to the Hage Estate during the pendency of this audit.

The parties shall therefore be cited to a conference upon submission of the audit report.

Thanks.

Yours sincerely,

Kabineh M. Ja'neh
Justice-in-Chambers
Supreme Court of Liberia

The appellant filed before the full bench of the Supreme Court a fourteen-count bill of information, claiming that the orders issued by Justice Ja'neh without having issued the alternative writ of prohibition prayed for by the appellees/petitioners violated his constitutional right to due process of law, because, according to the appellant, Justice Ja'neh's failure to issue the alternative writ denied him the right to appeal the Justice's decision to the full bench of the Supreme Court. We quote counts 11, 12, 13 and 14 of the bill of information:

11. Informant continues that after more than eight (8) months since both parties excepted to the ruling of the [Monthly and Probate Court] judge, the respondent with shock and dismay filed with the respondent Justice Ja'neh in Chambers filed for a petition for a writ of prohibition against the probate court judge and the informant; that in their petition, the petitioners prayed that the Justice should grant them an alternative writ of prohibition.

12. That informant furthered that upon the filing of this petition, His Honor, Justice Ja'neh on the 6th day of April 2012, cited the parties to a conference including the probate judge. That during the conference, His Honor, the Chambers Justice adopted a strange and unprecedented rule that is, by deviating from the petition filed by the petitioners and began to solicit evidence of support to Oumou and her children from the informant and correspondent Judge Holder over the objection of the informant's counsel.

13. That notwithstanding this strange practice adopted by the Chambers Justice, His Honor Justice Ja'neh to have the respondents produce new evidence in the face of whether or not to grant or not to grant the petitioners' petition the respondent received from the Chambers of Justice Ja'neh a citation for a third conference to be attended on Friday April 20, 2012 at the hour of 2:30 p.m. and attached thereto the citation, is a second petition for prohibition by the same petitioners who this time are making a new and strange demand praying the Chambers Justice oust the executor, Mr. Bassam H. Jawhary from the estate and replace him with Oumou Sirleaf and "A Morris Dukuly" who from the inception of all of the conferences have been present along with Tony Hage, another Lebanese who are not parties to any of the actions before the Justice.

14. That informant believes strongly that Justice Ja'neh is poised to deviate from the legal procedure of granting the petitioners' petition since indeed and in truth, a hearing will have to be had and ruling made to afford any dissatisfied party to take an appeal to the full bench, but rather is inclined from the look of things, intends to act against respondent only upon a conference, which respondent believes to be contrary to the practice and law of the land.

The above-quoted bill of information was heard by the full bench of the Supreme Court, and in an opinion this Court delivered through Mr. Justice Philip A.Z. Banks, Ill, remanded the case "to the Justice in Chambers with instruction that he should resume jurisdiction over the case and decide, consistent with the exercise of his discretion, whether to issue the alternative writ of prohibition or

deny the issuance of the writ." In compliance with the mandate of the full bench, Justice Ja'neh, on January 26, 2013, issued the alternative writ of prohibition and resumed jurisdiction over the case.

On July 5, 2013, counsels for the appellant filed a twenty-three count motion before Justice Ja'neh, praying Justice Ja'neh to rescue himself from the case. Justice Ja'neh granted the motion and forwarded the case to the full bench of the Supreme Court. The counsels for the appellant also file a three-count motion on July 24, 2013 requesting the recusal of one of appellees' counsels, the Wright & Associates Law Firm, because according to the appellant's counsel, Counselor M. Wilkins Wright, one of the lawyers at the Wright & Associates Law Firm, investigated the case in his capacity as Solicitor General of the Republic of Liberia. On November 26, 2013, the Wright and Associates Law Firm conceded and withdrew from the case.

On December 9, 2013, the Supreme Court remanded the case to the Chambers Session, now presided over by Her Honor Justice Sie-A-Nyene G. Yuoh and mandated Justice Yuoh to hear the petition for prohibition filed by the appellees before Justice Ja'neh. Following the remand of the case to the Justice in Chambers for hearing, the appellees withdrew their petition for prohibition and filed in its stead, an amended petition to which the appellant filed returns Justice Yuoh heard the arguments pro et con in the petition for prohibition, considered the facts and circumstances of the case, and determined that there were two issues determinative of the case:

- 1) Whether the ruling of the trial court was final or interlocutory?
- 2) Whether the properties in question can be excluded from the estate of the late Milad R. Hage?

In ruling on the first issue, Justice Yuoh held: We hold that the trial court's judgment was not a final judgment but interlocutory, the reason being that the Ruling of August 25, 2011 did not determine the losing party and a winning party in the proceedings below; rather, it was still in need of further steps to be taken by the parties to enable the court to pass on the inventories of the estate. In view of these legal citations, it is our holding that the writ of prohibition, is one of sound judicial discretion to be granted or refused according to the facts and circumstances of the, particular case, same can and should be granted in the instant case. As regards the second issue, Justice Yuoh held: It is therefore the Ruling of this Chamber Session that the preemptory writ of prohibition is hereby granted prohibiting the inclusion of properties of the petitioners from the estate of the late Milad R. Hage, but which properties must be properly identified by evidence duly passed upon in the monthly and probate court, with all proceeds from said properties being held in escrow pending such proper identification by a proper judicial process. All parties interested in the welfare of the children who may still be minor(s), if there be any to date, may apply to the Monthly and Probate Court for authorization to administer the properties of the minor(s) in keeping with law. The natural guardian of the children should be given preference unless she is found to be unfit to properly execute her duties.

With this background, we shall now proceed to address the pertinent and determinative issues, amongst the myriad of issues presented by this case in order to arrive at a legally and judicially sound decision; one which we believe will serve the end and interest of transparent justice. The issues are:

1. Was the Monthly and Probate Court Judge's ruling of August 25, 2011 denying the appellants/movants' motion to exclude their properties from the testate estate of Milad R. Hage a final ruling, the proper province of which was an appeal to this Honorable Court?
2. Given the facts and circumstances of this case, is the extraordinary writ of prohibition the proper means by which the Supreme Court may exercise jurisdiction over the subject matter of this case?
3. Was the breaking and initialing of the seal on the purported Last Will and Testament of Milad R. Hage by the Judge of the Monthly and Probate Court for Montserrado County, His Honor J. Vinton Holder on April 13, 2013, which is six days prior to the death of Mr. Hage and twenty-five days prior to the filing of the petition for admission of the purported Last Will and Testament of Mr. Hage to probate consistent with the Decedents and Estates Law of this Republic and therefore legal?
4. Is the assertion by the Judge of the Monthly and Probate Court for Montserrado County, that the properties sought by the appellees to be excluded from the testate estate of Milad R. Hage are neither real nor personal legally and factually tenable?
5. Are appellant's assertions and arguments, as contained in Counts 8 and 10 of the appellant's resistance to the appellees' motion to exclude their properties from the testate estate of Milad R. Hage, inconsistent with the intent, directive and wishes of Milad R. Hage, the testator, such that the assertions and arguments constitute a disavowal of the purported Last Will and Testament of Milad R. Hage by the appellant?
6. Does the fact that the late Milad R. Hage may have bought the properties sought by the appellees to be excluded from the Hage Estate, in the names of the appellees, make those properties the properties of the Hage Estate, and was it necessary, given that these were allegations of fact, for the Probate Judge to entertain evidence, before ruling on the motion?
7. Were the appellees adequately and effectively represented by their legal counsels before the Monthly and Probate Court, and if not, does this provide a legal basis for remand of the case in order that the parties are accorded transparent justice?

We will discuss the issues in the order as presented. The first issue is whether or not the ruling of the Monthly and Probate Court Judge denying the appellee's motion to exclude certain properties from the testate estate of the late Milad R. Hage, was a final ruling subject only to an appeal. As indicated above, our colleague, Madam Justice Yuoh, answered this question in the negative and held that "the trial court's ruling was not a final ruling but interlocutory, because, as she saw it, the ruling of August 25, 2011 did not determine the losing party and a winning party in the proceedings below; rather, it was still in need of further steps to be taken by the parties to enable the court to pass on the inventories of the estate. We disagree with the position of our colleague and hold that the Monthly and Probate Court Judge's ruling of August 25, 2011 was a final ruling subject only to an appeal. A final ruling or judgment, this Court has held, [is] one which determines and disposes of the whole merit of the cause before the court by declaring that the plaintiff is or is not entitled to recover by the remedy chosen, or which completely and finally disposes of a branch of a cause which is separate and distinct from other parts thereof; [it is] one which terminates the litigation between the parties on the merits and leaves nothing to be done except enforcement by execution of what has been

determined. *Liberia Tractor and Equipment Company v. Sonpon*, 35 LLR 329, 334-335 (1988). See also, *Kru and Wolo v. Tarpeh and Doe*, 19 LLR 472, 475 (1970).

In contradistinction, we have said that an interlocutory ruling [is] one which lack[s] finality; one which is rendered in the middle of a cause upon some plea, proceeding or default; one which is only intermediate and does not finally determine or complete the suit; and that a judgment is interlocutory when it is made before a final decision, for the purpose of ascertaining a matter of law or fact preparatory to a final judgment, or which determines some preliminary or subordinate point or plea, or settles some step, question, or default arising in the process of the case, but does not adjudicate the ultimate rights of the parties or finally put the case out of court. This was the position this Court took in the *Liberia Tractor and Equipment Company* case cited above.

Applying these standards to the August 25, 2011 ruling of the Monthly and Probate Court Judge, it is clear that that ruling was a final ruling. The Judge of the Monthly and Probate Court ruled conclusively that the properties sought by the appellees to be excluded from the Hage Estate were not excludable because [n]owhere in [Mr. Hage's] Will was a piece of property willed to anyone and as such how can same be excluded from the said Will? Since the Judge accepted the argument that Mr. Hage acquired leasehold interest in certain real properties owned by the appellees as, according to the Judge, evidenced by several leases between movants and the deceased, the ruling effectively made such properties leasehold assets or properties of the estate that could not be excluded from the estate. The ruling therefore brought finality to the issue of whether or not the properties were excludable from the other properties of the estate.

The fact that the motion consisted of two parts: namely, to exclude properties said to be owned by the appellees and to order an audit of the appellant's activities relative to his handling of the estate's funds, makes no difference, as the two components of the motion were separate and distinct. Excluding the appellees properties from the properties of the estate would have had no effect on whether or not the activities of the appellant with respect to the estate's properties were appropriate or inappropriate. Similarly, a determination that the appellant's activities relative to the estate's properties were appropriate or inappropriate would have had no effect on the excluded properties, except that a determination that the appellant inappropriately handled the excluded property, would have entitled the appellees to a refund or restitution of whatever was inappropriately handled by the appellant. Whereas, a determination that the appellant had in fact, inappropriately dealt with the estate's properties may have disqualified the appellant from further serving as Executor of the estate; and perhaps, would have also required him to refund, to the estate, the portion of the estate's properties that was inappropriately handled by him.

We hold therefore, that the portion of the Monthly and Probate Court Judge's ruling dealing exclusively with the motion to exclude the appellees' properties brought finality to the issue of excludability of the properties sought to be excluded. By the ruling, the right of the appellees to exclusion of their properties from the Hage Estate's properties was finally denied. We hold further, that because the ruling of the Monthly and Probate Court Judge denying the motion to exclude was final, an appeal was the only proper course of action available to the appellees. *Outland and Weaver v. Pearson and Outland*, 31 LLR 97 (1983)

Next, we address the issue of whether or not under the facts and circumstances of this case the extraordinary writ of prohibition is the proper means by which this Court may exercise jurisdiction over the subject matter of this case. In addressing this issue, we note that in a long line of cases, this Court has held that prohibition cannot correct errors or irregularities committed in a trial where adequate and complete remedy lies in appeal, error or certiorari.

Prohibition as defined by statute is a special proceeding to obtain a writ ordering the respondent to refrain from further pursuing a judicial action or proceeding specified therein.

Cvll Procedure Law Chapter 16, Section 16.21.3. It is also that process by which a superior court prevents an inferior court or tribunal possessing judicial or quasi judicial powers from exceeding its jurisdiction in matters over which it has cognizance, or usurping matters not within its jurisdiction to hear and determine. It is a means of restraint on judicial personnel or bodies to prevent usurpation of judicial power, and its essential function is to confine inferior courts to their proper jurisdiction and to prevent them from acting without or in excess of their jurisdiction; it is preventive in nature rather than corrective. The Management of Catholic Relief Services v. Natt et aL, 39 LLR 415, 424 (1999); Kaba and McCromsy v. Township of Gardnersville et aL, 39 LW 549 (1999); Sawan v. Cooper et aL, 39 LLR 598 (1999). Prohibition, this Court has held, will lie only in cases of manifest necessity and will not be granted where the petitioner has other adequate and available remedies. Fazzah v. National Economy Committee, 8 LLR 85, 89-92 (1963); Harris v, Smith, 26 LLR 275, 283 (1977). Further, "prohibition will lie where the tribunal or respondent has assumed jurisdiction not ascribed to it by law, or has exceeded its designated jurisdiction or, in the exercise of its lawful jurisdiction, is proceeding by wrong rules other than those which should be observed at all times. In all three of these instances, prohibition will lie to restrain the respondent." Garlawolu et aL v. Election Commission, 41 LLR 377, 384 (2003).

This Court has also held that: "If the inferior court or tribunal has jurisdiction of both the subject matter and the person, prohibition will not lie to correct errors of law or fact for which there is an adequate remedy by appeal or otherwise, whether such errors are merely apprehended or have been actually committed. Doe et al., v. Randolph, 35 LLR 724, 736 (1988). Liberia Trading and Development Bank v. Mathies and Brasilia Travel Agency, 39 LW 272 (1998).

The question we is ask is, did the Judge of the Monthly and Probate Court for Montserrado County, in the hearing of the appellees' motion to exclude certain properties from the Nage Estate: (a) assume jurisdiction not otherwise ascribed to the Monthly and Probate Court for Montserrado County or a Judge thereof by law; (b) exceed his designated jurisdiction; or (c) in the exercise of his lawful jurisdiction, proceed by wrong rules other than those which should be observed at all times? We answer the question in the negative. The Monthly and Probate Court Judge had statutory and constitutional jurisdiction over the subject matter of this case and acquired personal jurisdiction over the appellant and the appellees by virtue of the fact that both parties voluntarily submitted themselves to the jurisdiction of the Monthly and Probate Court by the appellant's filing of the petition for admission of the late Milad R. Hage's Last Will and Testament to probate and the appellees' filing of their motion to exclude, from the late Milad R. Hage's testate estate, certain properties said to be owned by the appellees, and for an audit of the appellant's activities relative to the estate's funds.

As regards the jurisdictional powers of the Monthly and Probate Court in the case under review, the Judiciary Law provides:

Section 5.2. Original jurisdiction (exclusive) of the Monthly and Probate Court, the Provisional Monthly and Probate Courts and the Probate Divisions of the Circuit Court. The Monthly and Probate Court of Montserrado County, the Provisional Monthly and Probate Courts and the Probate Divisions of the Circuit Court shall have exclusive original jurisdiction of the following matters arising within their respective territorial jurisdictions:

(a)To probate wills affecting real and personal property; (b)To grant letters testamentary and of administration; (c)To direct and control the conduct and settle the accounts of executors and administrators; (d)To enforce the payment of the debts of testators and intestates and of their legacies and inheritances and to direct the distribution of their estates; (e)To order the sale and distribution of the real property of deceased persons; (f)To cause the admeasurement of dower, or interests in lieu thereof, to widows; (g)To have general supervision and direction of the estates of deceased persons and of minors, mentally disabled persons, and persons judicially declared as incompetents, and of all affairs connected with them; (h)To appoint and remove guardians of the property for minors, to direct and control their conduct and to settle their accounts; (i)To appoint and remove guardians of the property of incompetents, to direct and control their conduct and to settle their accounts; (j)To hear and determine applications for the adoption of children; (k)To hear and determine proceedings to legitimize illegitimate children; (l) To probate deeds, mortgages and other documents affecting or relating to real property and other instruments, documents and papers necessary to be probated; (m) The Provisional Courts shall have jurisdiction in all actions of debt where the amount claimed is \$2000.01 or more; and Section 102 of the Decedents Estates Law provides:

Section 102.1. General Jurisdiction of court.

The court, except as otherwise provided by statute, shall exercise full and complete general jurisdiction in law and in equity to administer justice in all matters relating to the affairs of decedents and others over whose affairs the court has jurisdiction.

Section 102.2. Jurisdiction of parties and subject matter; when and how obtained.

1. Subject matter. The court obtains jurisdiction in every case to make a decree or other determination by the existence of the jurisdictional facts prescribed by statute. The jurisdiction of the court is exercised by the commencement of a proceeding in the court. All proceedings are special proceedings and are commenced by filing a petition with the clerk of court and issuance of a citation thereon.

2. Parties. Personal jurisdiction of parties is obtained by service of process upon the parties or by submission to the jurisdiction of the court by waiver of issuance and service of process, appearance in person or by attorney or by pleading.

In our view, by denying the motion to exclude certain properties said to be owned by the appellees, the Judge of the Monthly and Probate Court did not exceed his or the court's jurisdiction or proceed by wrong rules other than those which should be observed at all times, because the Judge of the Monthly and Probate Court, like other judges of this Republic, has discretionary as well as

administrative powers to grant or deny motions filed before the Monthly and Probate Court. Section 102.6 of the Decedents Estates Law provides in relevant part: "Powers incidental to jurisdiction of the court. The court has the following powers :...(f) [i]n the exercise of its jurisdiction the court shall have all of the powers that the Circuit Court would have in like actions and proceedings including but not limited to such incidental powers as are necessary to carry into effect all powers expressly conferred herein. As is well established in this jurisdiction, one of the powers of a circuit court or the judge thereof, is the power to hear and grant or deny motions duly venued before the court or the judge. Civil Procedure Law, Chapter 10, Section 10.2. Therefore, we hold that the Judge of the Monthly and Probate Court for Montserrado County, having acquired jurisdiction of the subject matter and of the persons of the appellees and the appellant, and having proceeded by rules which should be observed at all times by the trial courts of this Republic, his ruling denying the appellees' motion to exclude certain properties said to belong to the appellees from the Hage Estate, was consistent with his statutory and constitutional authority. Consequently, a determination of the validity or invalidity of said ruling is not the province of the extraordinary writ of prohibition; instead, said ruling can only be reviewed via an appeal announced and perfected in accordance with our appeal statute. Accordingly, prohibition will not lie to correct any errors which may have been made in the ruling of the Judge of the Monthly and Probate Court.

Ordinarily, our conclusion that this case is not the proper province of the extraordinary writ of prohibition, but instead, is one to which the appellees had a right of appeal to this Honorable Court, would have ended our review of this matter. However, this conclusion does not end our inquiry as a court of last resort upon which the citizens and residents of this country depend for redress of their grievances; because there were several irregularities, errors, negligence and glaring misconduct committed by the trial court in its interpretation of the Decedents Estates Law and in its overall handling of this matter, which we must address in the interest of transparent justice. Moreover, this case raises a number of unanswered questions, the answers to which must be determined at appropriate evidentiary hearing during which evidence shall be taken, an exercise which this Court is constitutionally and statutorily prohibited from doing.

We are also of the opinion that were we to dismiss this case on such technical ground as the inapplicability of the writ of prohibition to this case, that such a result would be detrimental to the substantial interests of the appellees and the administration of justice. We have therefore deemed it necessary to address the other issues raised above and remand this case to the court below with instructions in order to do justice to all interested parties.

We now address some of the glaring irregularities committed by the Judge of the Monthly and Probate Court for Montserrado County, His Honor J. Vinton Holder, in his handling of this case.

Firstly, our attention is drawn to the records of this case which reveal that the Judge of the Monthly and Probate Court for Montserrado County, His Honor J. Vinton Holder, on April 13, 2010, six days prior to the death of Mr. Hage and twenty-five days prior to the filing of the petition for admission of the purported Last Will and Testament to probate, broke and initialed the seal on the purported Last Will and Testament of Mr. Hage. This act by the Judge, which was never denied, raises a question as to whether or not such act was consistent with the Decedents and Estates Law and therefore legal.

In answering this question, we note, initially, that the conduct of Judge Holder, as herein described, is novel and unprecedented in this jurisdiction and in any similar jurisdiction known to this Court.

In relevant part, Section 1.3(n) of the Decedents Estates Law defines a will as an oral declaration or written instrument made to take effect upon death, whereby a person disposes of property or directs how it shall not be disposed of, disposes of his body or any part thereof, exercises a power, appoints a fiduciary or makes any other provision for the administration of his estate, and which is revocable during his lifetime. Clearly, this express language of Section 1.3(n) of the Decedents Estates Law indicates that a testator's will can neither be presented for probate nor admitted to probate until the testator is shown or proved to be dead. This also means that in order for a probate court or a judge thereof to accept and admit to probate a purported last will and testament of a testator, the court or judge must be presented with clear and convincing evidence of the death of the testator; the most convincing evidence of which is a death certificate and/or the testimonies of witnesses regarding the death of the testator.

Section 113.9 of the Decedents Estates Law provides: Additional standard where petition alleges death of testator as presumptive; effect of finding. Where the petition for probate of a will alleges that the testator has disappeared under circumstances sufficient to justify the believe he is dead the court shall take proof of the facts. If it appears that the testator is dead, the court may make a decree determining such fact and if the standards provided for in section 113.3 have been satisfied, admitting the will to probate. The decree shall be binding in its effect upon the interests in the estate of persons under disability and of future contingent interests of persons not in being as well as the interests of adult competent persons." This Court thus wonders what evidence was available to His Honor J. Vinton Holder on April 13, 2010, which convinced him that the late Milad R. Hage had in fact, died, which in turn led him to break and initial the seal on the purported last will and testament of the late Milad R. Hage. We wonder also, whether or not this was a deliberate act by the learned Judge to circumvent the dictates of the Decedents Estates Law.

Whatever Judge Holder's motive may have been when he broke and initialed the seal of the purported last will and testament of Milad R. Hage, we hold that his conduct, was inconsistent with and repugnant to the Decedents Estates Law and therefore clearly illegal. In the case: *Talawry v. Pearson et al.*, 30 LLR 835, 839-840 (1982), we held that a probate court decree which admits into probate an instrument without following the requirements of the Decedents Estates Law is illegal and will be set aside. This principle is applicable to this case, except that because of the peculiar nature of this case, this Court will not set aside the instrument, but will remand the case to the Monthly and Probate Court for Montserrado County for further proceeding consistent with instructions hereinafter contained.

We next address whether or not the assertion by Judge Holder that the properties sought by the appellees to be excluded from the testate estate of Milad R. Hage are neither real nor personal properties, legally and factually tenable. In ruling on appellees' motion to exclude certain properties from the estate of Mr. Hage, Judge Holder determined that there were four dispositive issues, the first of which was: "Whether or not under the circumstances of this case the motion to exclude a beneficiary, especially so a widow, from a testate estate is applicable wherein the properties to be excluded is [sic] neither a real or personal, as required by section 4, sub-section 4.1, sub-section 3.

We note from the onset that this phraseology of the issue is misplaced, because the appellees' motion did not request the exclusion from the estate of the appellees, who along with Mr. Hage's Lebanese children, are the beneficiaries of his will. Rather, the motion requested the exclusion from the estate, of the appellees' properties which they believed were not a part of, or could not form a part of the estate of the late Milad R. Hage. And to prove this fact, the appellees attached to their motion to exclude their properties from the Hage Estate, title deeds to real properties said to be owned by them, and on which they claimed eighty-six stores were constructed by the late Milad Ft Hage, pursuant to a lease agreement executed by and between the late Milad R. Hage and co-appellee Oumou Sirleaf-Hage.

Further, the Monthly and Probate Court Judge's assertion that the properties to be excluded [are] neither real [nor] personal finds no support in law or in the certified records of this case. Additionally, this argument defies logic and common sense. Generally, a leasehold estate or leasehold right is an ownership of a temporary right to hold land or property in which a lessee holds rights of real or personal property by some form of title from a lessor or landlord. However, a lessee who has leasehold right to real property does not own fee simple title or rights to the leased real property. Therefore, a leasehold estate or leasehold right is typically considered by law as personal property. Moreover, the law only recognizes two kinds of property: real property and personal property. Real property is land and anything erected on, growing on, or affixed to it, including buildings, crops and other fixtures. Personal property, also referred to as movable property, is anything other than land that can be the subject of ownership, including merchandise, goods, money, clothing, furniture, animals, as well as intangible property. Accordingly and because the stores constructed by Mr. Hage pursuant to his leasehold right were constructed on land said to be owned by the appellees, coupled with the fact that the goods or merchandise contained in those stores are personal properties, the properties or assets of his estate are personal properties. Therefore the Monthly and Probate Court Judge's claim that the estate has no real or personal property is false, and if accepted would mean that the estate in fact has no assets.

We are also concerned about the fact that the appellees claim that they were not afforded an opportunity to file objections to the probate of the will because at the time the will was presented for admission to probate, they were in Lebanon, attending the funeral ceremonies of Mr. Hage, and that despite this fact, His Honor Judge Holder denied their objections which were filed after the thirty day-period imposed by the Judge as deadline for the filing of objections. In passing on his denial of appellees' objections to probate of the will, Judge Holder states, among other things that "this court must again revert to its records which show that the said instrument was duly submitted to this court on Mayl 7, 2010 which process was done in open court in the presence of the respondent and members of the family of the movants, including Mrs. Hage's mother, Mr. Cooper Yalleba, and Mr. Jalloh, and a regular hearing was duly heard and the requirement of the statutes having been met, this court ruled admitting into probate the instrument as the last will and testament of the late Milad R. Hage. Moreover, the widow did appear before the court, along with the executor and asked some questions about the signature which, according to her, was not on the will that she knew." Conspicuously absent from these assertions are any references by the learned Judge to service of process, and whether or not (1) the appellees were served with process pursuant to Section 113.3 of the Decedents Estates Law, how they were served, by whom they were served and when they were

served; and (2) examination of attesting witnesses, and whether or not the alleged attesting witnesses to the purported last will and testament were examined in open court before the will was admitted to probate as required by Section 113.4 of the Decedents Estates Law. The Judge's failure to address these critical requirements of the Decedents Estates Law in his response to the appellees' allegation that they were not afforded an opportunity to file objections to the probate of the will because at the time the will was presented for admission to probate, they were in Lebanon, raises the presumption that those necessary steps were not taken prior to the admission to probate of the Last Will and Testament of Mr. Hage; which again raises a question as to the legality of the entire probate process.

Our attention is also drawn to count 6 of appellees' motion, which alleges: And Movants further submit that although they knew nothing about the presentation to this Court of the purported Last Will and Testament of decedent Milad R. Hage, because they were still in Lebanon and neither they nor anyone had objected to or challenged the purported Instrument, yet the Respondent petitioned this Court for the proving of said purported Last Will and Testament in the absence of any objections or challenge to its genuineness, thereby personally conceding the spurious nature of the Instrument, Your Honor ignored the Respondent's request for proving the Will and sua sponte ordered the Clerk of this Court to read said purported Last Will and Testament on May 13, 2010, and thereafter ordered the Clerk of Court to issue public notice to the effect that an instrument purporting to be the Last Will and Testament of the late Milad R. Hage had been duly read in open court, and therefore all those having objections thereto may file same with the Clerk within thirty (30) days. That after the thirty (30) days the Court would proceed to hear the Petition and admit said instrument into probate, despite the petition before the Court was specifically for proving the purported Last Will and Testament, and not for admitting the purported Last Will and Testament into probate.

This allegation is also repeated in paragraph 1.9, page 3, of appellees' brief filed with this Court. In the face of this serious and damaging allegation, which questions the Judge's impartiality, credibility, integrity, and fairness, the learned Judge did not deem it necessary to clearly and squarely challenge said allegation, but instead cursorily claimed in his ruling of August 25, 2010, that "the said instrument was duly submitted to this court on May 7, 2010 which process was done in open court in the presence of the respondent and members of the family of the movants, including Mrs. Hage's mother, Mr. Cooper Yalleba, and Mr. Jalloh, and a regular hearing was duly heard. We must ask these questions: are those named by the Judge as members of co-appellee, Oumou Sirleaf-Hage's family entitled to notice of the probate of the will pursuant to the Decedent Estates Law? Why did the Judge order a reading of the will when the appellant, according to the appellees, requested that the will be proved? Besides, does the presence of the individuals named by the Judge dispose of the fact that the Judge allegedly ordered the reading of the will without a petition being filed requesting such reading? We think not, and hold that the Judge's conduct as, contained in count 6 of the appellees motion and repeated in paragraph 1.9 of the appellees' brief is violative of the Decedents Estates Law and therefore reprehensible.

In his ruling of August 25, 2010, Judge Holder raised and answered, in the affirmative, the question of whether or not a beneficiary who has received benefits under a will is estopped from questioning or challenging the will's validity. He then went on to list a series of payments said to be made to the

appellees by the appellant, without stating whether or not said payments were made from the total assets of the estate as evidenced by an inventory taken by the appellant. The Decedents Estates Law requires that in all estates, inventory must be taken within two months after the granting of letters, showing all assets of the estate. Decedents Estates Law Chapter 119, Section 119.1 & 2. Section 119.1 & 2 of the Decedents Estates Law provide:

§ 119.1. Inventory and appraisement.

1. Requirements as to inventory. Within two months after his appointment, unless a longer time shall be granted by the court, every executor or administrator shall make and return a verified inventory and appraisement in one written instrument, of all the property of the decedent which shall come to his possession or know 1 edge, including a statement of all encumbrances, liens and other charges on any item. Such property shall be classified therein as follows:

(a)Real property with plat or survey description; (b)Furniture, household goods, and wearing apparel; (c)Corporation stocks described by certificate numbers; (d) Mortgages, bonds, notes and other written evidences of debt, described by name of debtor, recording data, and other identification; (e)Bank accounts, insurance policies in which the estate is the beneficiary, and money; (f) All other personal property accurately identified, including the decedent's proportionate share in any partnership, but no inventory of the partnership property will be required.

2.Requirements as to appraisement.

At the time letters testamentary or letters of administration are granted, the court shall appoint two suitable, disinterested persons, as appraisers, to whom the executor or administrator shall exhibit the inventory. The appraisers shall determine and state in figures opposite each item contained in the inventory the fair net value thereof, as of the date of decedent's death, after deducting the encumbrances, liens and charges thereon, and forthwith deliver such inventory and appraisement, certified by them under oath, to the personal representative who shall file it with the court. The appraisers shall be allowed such reasonable fees, necessary disbursements and expenses as may be fixed by the court, which shall be paid by the executor or administrator as expenses of administration.

3. Dispensing with appraisers in certain cases. If the inventory shows that the estate consists solely of personal assets of definitely liquidated values, or of property of negligible value, the court may in its discretion accept the verified appraisal of the executor or administrator in lieu of appraisal by appraisers; and in such case the court need not appoint appraisers, or may revoke their appointment if already made,

§ 119.2. Supplementary inventory and appraisement.

Whenever any property not mentioned in the inventory comes to the knowledge of an executor or administrator, he shall either make a supplemental inventory thereof and cause such property to be appraised, such supplemental inventory and appraisement to be returned within thirty days after the discovery thereof, or include the same in his next accounting unless the court shall order a particular manner of return.

We have held that there are no exceptions to the mandatory requirements of Section 119.1 & 2 of the Decedents Estates Law. Reeves et al. v. Johnson et al., 28 LLR 30, 33 (1979). We have also held

that legacies mentioned in the will of a decedent cannot be distributed to legatees in the absence of inventory. See *Id.* at 42. We note that our review of the records of this case reveals that none of these mandatory statutory requirements was complied with in the handling of this estate, as our review of the records has revealed no evidence of the filing of a comprehensive inventory of the estate's total assets. Instead, what we see in the records is purported evidence of alleged distributions made by the appellant to the appellees. This Court wonders on what basis were there payments made to the appellees without an inventory which clearly delineates the assets and liabilities of the estate.

We note also, that under our Decedents Estates Law, all estates in Liberia must be administered and closed within twelve months, except in cases where there are foreign debts to be paid, in which case said estate must be closed in no more than 18 months. *Nungbor v. Fiske*, 13 LLR 304, 308 (1958). In this case, the decedent has been dead for more than three years and the estate has been administered by the appellant for more than three years now; and there is no evidence of foreign debts owed by the estate, due to the fact that no inventory has been submitted clearly showing the total assets and liabilities of the estate. Further, there is no showing as to when exactly this estate is scheduled to be closed or whether a petition for having the estate open beyond the statutory period was ever filed by the appellant and approved by the Probate Court Judge, His Honor J. Vinton Holder. This situation also raises a question as to the current status of the estate and whether or not Judge Holder has adequately and effectively exercised his statutorily required supervisory power over the appellant and the estate and if not, whether his failure in this regard has proven detrimental to the substantial interests of the appellees.

Also, there are allegations by the appellees that in administering the Hage Estate, the appellant "has been and is still lavishly, destructively and without accountability operating the estate as a personal entity, undoing acts of decedent Milad R. Hage, such as illegally nullifying written authorization given by the deceased to ECOBANK to collect the rental from his stores to liquidate his obligation to said Bank, which rental appellant is personally collecting and converting to his own use, and also illegally disposing of non-perishable personal properties of the estate." (See Paragraph 9, Appellees' motion to exclude properties.) These are serious allegations which, according to the Decedents Estates Law, are grounds for the removal of an executor, but we see no action on the part of Judge Holder to investigate these serious allegations.

As regards the removal of executor and the grounds therefor, Section 107.13 of the Decedents Estates Law provides: Cases in which letters may be suspended, modified or revoked without process. In any of the following cases, the court may make a decree suspending, modifying or revoking letters issued to a fiduciary from the court without a petition or the issuance of process: (g) [w]here he mingles the funds of the estate with his own or deposits them with any person, association or corporation authorized to do business under the banking law in an account other than as fiduciary. This provision of the Decedents Estates Law makes it mandatory for a probate court judge to investigate any allegation that one of the specified grounds for the suspension, modification or revocation of Letters Testamentary or of Administration issued to an executor or administrator has occurred. How else could a probate court judge determine that one or more of these grounds have occurred, except through investigation, but so far, we have seen no evidence of any investigation conducted by his Honor J. Vinton Holder relative to these allegations? This failure by Judge Holder

to conduct an appropriate investigation of such serious allegations leads us to the conclusion that he has been derelict in his duty to supervise the administration of the Hage Estate. Granted, Item No. II of the Last Will and Testament of Mr. Hage grants the appellant "complete freedom and discretion as to the management and control of property owned by the Hage Estate. However, the appellant has and may exercise such freedom "so long as he shall act in good faith and in the best interest of [the] estate and [its] beneficiaries. Furthermore, this Court has held that "it is the primary duty of the probate court, standing in the place of the decedent, to protect all estates-testate and intestate; and where it is shown during the administration of any estate that the executor or administrator acted in a manner to call into question the honesty of their behavior in the handling of the assets of an estate, it is the duty of the probate court to take immediate steps to protect the estate from wastage, dishonesty and any malpractice which might adversely affect the interest of the legatees and beneficiaries. *Reeves et al v. Johnson et al*, 28 LLR 30, text at 47.

We next address some assertions, actions and conducts of the appellant, which call into question his fitness as a disinterested fiduciary, and which we believe are inconsistent with and repugnant to the Decedents Estates Law and the intent and wishes of the late Milad R. Hage, as expressed in his last will and testament. The appellant's assertions, actions and conducts hereinafter discussed which have tacitly been endorsed by Judge Holder, also calls in question the level of supervision exercised by the learned Judge or the lack thereof. We therefore believe that in addition to Judge Holder's own irregularities as set forth above, his failure to take notice of these obviously statutorily non-compliant conduct on the part of the appellant and to initiate corrective measures, also compel a remand of this case to the Monthly and probate Court for further proceedings.

In count 8 of his resistance to appellees' motion to exclude their properties from the estate of the late Milad R. Hage and to order a comprehensive audit of funds collected by the appellant from their properties, as well as funds assigned to ECOBANK by Mr. Hage to retire his obligation to ECOBANK, the appellant argued: "That because as to count two of Movants' Motion, Respondent concedes the fact that the decedent, Milad R. Hage was legally married to Olga and that their union was blessed with four children, but the contrary is that Ms. Oumou Sirleaf was never married to Mr. Hage. She was a concubine to the late Milad R. Hage and that indeed she bore three issues while in relationship with him. This assertion is backed by the marry certificate of the 19th day of September, 2009 which she proffered to one of her pleadings. Investigation to establish this fact by the NBI has revealed the fact that the entire transaction was a scam marred by high degree of FRAUD. Under the theory of law as relates to fraud, says that a fraud in one is a fraud in all. What a 4-1-97. This assertion by the appellant clearly evinces the appellant's animosity towards and hatred for co-appellee Oumou Sirleaf-Hage, and constitutes ultra vires action by the appellant.

Further, not only is the appellant's assertion that co-appellee Oumou Sirleaf-Hage was never married to Mr. Hage and that she was a concubine to the late Milad R. Hage absurd, false and misguided, but it also evinces bad faith on the part of the appellant, which bad faith directly contravenes Mr. Hage's directive that the appellant, in exercising his responsibilities as Executor of the Hage Estate, "shall act in good faith and in the best interest of my estate and my beneficiaries. (See last will and testament of Mr. Hage, Item no, II)

According to the purported Last Will and Testament of Mr. Hage and its Addendums, from which the appellant claims his authority as Executor of Mr. Hage's Estate, Mr. Hage refers on more than one occasion to co-appellee Oumou Sirleaf-Hage as my Liberian wife, Item no. II(b), Last Will and Testament of Mr. Hage and as my Liberian wife, Oumou Sirleaf, paragraph 1, An Addendum to Mr. Hage's Last Will and Testament. As evidenced by the clear and unambiguous texts of these provisions of Mr. Hage's Last Will and Testament and the first Addendum to same, Mr. Hage unequivocally considered co-appellee Oumou Sirleaf-Hage to be his wife. Given this fact and the additional fact that an executor of a will is required by law to comply with, execute and enforce the intent and wishes of the testator, the appellant's argument that co-appellee Oumou Sirleaf-Hage was not Mr. Hage's wife at the time of his death and the appellant's ordered investigation of the authenticity of the marriage certificate proffered by co-appellee Oumou Sirleaf-Hage as evidence of her marriage to Mr. Hage, generates the question whether the appellant has carried out the wishes of Mr. Hage as contained in his Last Will and Testament? Put differently, did Mr. Hage, in his Last Will and Testament, authorize the appellant to question and therefore investigate his marital relationship with co-appellee Oumou Sirleaf-Hage, and if the answer is in the negative, does the appellant's decision to engage in such act constitute a violation of his fiduciary duty to co-appellee Oumou Sirleaf-Hage, such that he could be disqualified from serving in his capacity as Executor of Mr. Hage's Estate? The law requires an executor of an estate has to be a disinterested party; but the appellant's assertion as contained in this resistance questions his position as such. Does the appellant's action also constitute a disavowal of the Last Will and Testament of Mr. Hage? The answers to these and the other questions raised herein are, in the opinion of this Court, crucial to the resolution of the dispute between appellees and the appellant. To answer these questions, however, requires an evidentiary hearing that cannot be done by this Court of last resort as this Court lacks the constitutional and statutory authority to take evidence.

In Count 10 of his resistance, also, the appellant argued: That because as to count 5 of Movants' Motion, Respondent says that while it is true that Milad R. Hage died in Aintoura, Lebanon, indeed the Movants attended the funeral thereat but again the contrary is that Ms. Oumou Sirleaf was, during the entire process of the funeral rite, in a joyful mood, evidence by photograph taken suggest this fact which Respondent gives notice to produce during trial if any. This argument like the one contained in Count 8 of his Resistance, evinces the appellant's antagonism towards co-appellee Oumou Sirleaf-Hage. Is the appellant an expert in personal moods, such that he can realistically and authoritatively state, from a photograph, that a woman whose husband for several years and with whom she was blessed with three children, died while she was at his bedside, was, during the entire process of the funeral rite, in a joyful mood?" Is this the role of the executor of an estate? Does an executor such as the appellant have any authority to question the motive, idiosyncrasies and qualification of a beneficiary of a Will in which the testator specifically named such beneficiary as one of his beneficiaries? Again, the question of whether or not the appellant's conduct in this respect is appropriate or inappropriate requires the taking of evidence, which this Court is constitutionally and statutorily not authorized to do in a case of this nature. We hold, however, that the appellants' assertions, as contained in Counts 8 and 10 of his resistance suggest to us that rather than carrying out the wishes of the late Milad R. Hage, as contained in his Last Will and Testament, the appellant is seeking to advance or is advancing his own agenda or interest, contrary to the dictates of Mr. Hage,

the Decedents Estates Law and decisional laws of this Court. In the case *Sharpe v. Urey*, 11 LLR 251, 256 (1952), this Court held that administrators and executors of estates owe a duty to such estates and the beneficiaries of such estates to exercise diligence, good faith and prudence in all dealings and must not promote their own interest to the detriment of any heirs or beneficiaries of the testator. This, in our opinion, requires fairness to all on the part of executors and administrators.

In Count 18 of his resistance, the appellant argued that: "That as to count 11 of Movants' Motion, Respondent says with respect to the stores as spelled out in said count, same present no much issue but maintains that those stores belong to the Estate and not to the beneficiaries in particular. Assuming without admitting that Ms. Oumou Sirleaf and the children have properties at Red Light, Paynesville, subject of part of the Testate Estate of Milad R. Hage, the truth is that it was the late Milad R. Hage who bought the entire properties, but due to the provision under our Constitution which forbids a non negro from acquiring real properties in Liberia, caused him to place these properties in the names of Ms. Oumou Sirleaf and the children primarily for the purpose of convenience. He then leased them from Ms. Oumou Sirleaf and his children through a legal transaction considering all of the legal requirements. This goes to say that taking it to the extreme, what Ms. Oumou Sirleaf and the children of the late Milad R. Hage are entitled to, on a technical note, is the rental and the allotments under the lease if and only if she Ms. Oumou Sirleaf and her crony, Tony Hage refrain from filing unmeritorious lawsuits against her very interests." We say granted, the properties sought to be excluded from the Hage Estate were purchased by Mr. Hage in the names of the appellees as claimed by the appellant. However, we see title deeds substantiating the appellees' ownership of the properties sought to be excluded from the Hage Estate and a Lease Agreement executed by and between co-appellee Oumou Sirleaf-Hage (formerly Oumou Sirleaf) and Milad R. Hage, dated the 7th day of July A.D. 1998.

In our opinion, the fact that Mr. Hage purchased the properties in the names of the appellees and title deeds thereto were issued in the names of the appellees, is evidence of ownership of the properties by the appellees; because in this jurisdiction, a title deed is evidence of the ownership of real property. The appellant's argument that the properties do not belong to the appellees, as implied in his argument is baseless, because the certain term of the lease agreement expired on July 7, 2006 and the optional period expired on July 7, 2011. This conclusion is based on the fact that our review of the records of this case has revealed no additional extensions of the lease agreement and further, by the fact that the appellees argued before the Monthly and Probate Court that the agreement had in fact, expired in accordance with its terms and conditions on July 7, 2011. Clauses 8 and 9 of the lease agreement provide: "8.-The Lessee also promises and agrees that at the expiration of the period herein granted he will quietly and peaceably yield and surrender to the Lessor, her heirs, executors or administrators the herein leased premises in as good a condition as reasonable wear and tear thereof will permit; Acts of God and damages not traceable to the Lessee's negligence excepted." "9.-The Parties agree that the terms and conditions of this Lease shall extend to and be binding upon them, their heirs, executors, administrators, assigns and successors-in-business during the full life of this Lease. According to Clauses 8 and 9 of the Lease Agreement, the Hage Estate is required to "quietly and peaceably surrender to the lessor" the property covered by the lease agreement, firstly, because the agreement has expired on its terms and secondly, because the terms and conditions of the lease [extends] to and [are] binding upon" the Executor of the Hage Estate.

As regards the relationship between co-appellee Oumou Sirleaf-Hage and her children relative to the properties sought to be excluded from the Milad R. Hage Estate, we have held that instruments which convey property to two or more persons without any qualifying words indicating an intention that it should be divided among them is deemed to have conveyed property in joint tenancy. See *Miller et al. v. Parker et al.*, 30 LLR 412, 419 (1982). We have also held that No constitute a joint tenancy the four unities must exist—unity of interest, unity of title, unity of time and unity of possession. In re the Intestate Estate of the *Late S. B. Nagbe, Sr.*, 30 LLR 278, 288 (1982). Here, the title deeds attached to the properties sought by the appellees to be excluded from the Milad R. Hage Estate contain no qualifying words indicating an intention that the properties should be divided and if so, how they should be divided; the interests in the properties were conveyed to the appellees as a group; title to the properties was conveyed to the appellees simultaneously; and the appellees took possession of the properties as a group simultaneously. Therefore the four unities exist as to the properties. Because a contrary intent is not shown, we must proceed on the premise that Oumou Sirleaf-Hage and her children own the properties as joint tenants, to the exclusion of Mr. Hage, in which case she could not legally encumber the children's interest via a lease agreement without their consent.

As a universal general principle to which this jurisdiction subscribes, persons who are not parties to an agreement cannot be bound by its terms and conditions. Thus, we have held that: "It is provided in the law of contract that as a general thing, the obligation of contracts is limited to the parties making them, and, ordinarily, only those who are parties to contracts are liable for their breach. Parties to a contract cannot thereby impose any liability on one who, under its terms, is a stranger to the contract, and, in any event, in order to bind a third person contractually, an expression of assent by the person is necessary. *National Port Authority v. Willie and Kpanan*, 37 LLR 676, 686 (1994). Accordingly and assuming that the lease agreement by and between Milad R. Hage and Oumou Sirleaf-Hage is still in full force and effect and therefore enforceable, the children being non-parties to same, its terms and conditions are unenforceable against them. This being the case, we hold that the children's interest in the properties sought to be excluded from the Hage Estate cannot legally form a part of said Estate, and is therefore excludable from the Hage Estate.

In the case *Nimely et al. v. Kaba et al.*, 14 LLR 82, 93 (1960), this Court, speaking through Mr. Justice Pierre, stated:

A parent, whether as natural guardian or otherwise, has no title to the property of his minor child, nor any custody or control over it. It is the theory of the law that if an infant is the owner of property, a guardian should be appointed to manage such property, and the extent of the father's right in this respect is to be preferred in the selection of the guardian. Under the civil law and codes based thereon, the father has the administration of his child's estate until its majority or emancipation, and is entitled to the usufruct thereof. However, even in such a jurisdiction, he cannot sell his child's property without the order of a judge. By statutes in other jurisdictions, the father and mother are equally charged, as joint natural guardians, with the care and management of their children's estates.

A parent has no authority to sell, pledge, or transfer his child's property, or to make contracts with respect to it. Where he does undertake to handle the property, he may be required to give a bond, and subsequently to render an accounting.

Before discussing the last issue raised in this case, we are constrained to address an important issue, which is, given the obvious disharmony between the appellant and the appellees, all of whom are beneficiaries of the Milad R. Hage Estate, should the Estate be closed? In the case *Ballah v. Larzalee*, 29 LLR 384 (1981), we held that where there is continued disharmony between a sole executor and heirs and legatees of an estate, the best interest of the estate dictates that the estate should be closed. We believe that this principle is appropriate and applicable in the instant case. Here, the sole Executor, Bassam H. Jawhary, is at complete loggerhead with all the beneficiaries of the Estate, to the extent that he has questioned the marital relationship between co-appellee Oumou Sirleaf-Hage and Milad R. Hage. Also, various claims and counterclaims have been made by both parties against the other party. Hence, it is difficult for one to see how the sole executor and the beneficiaries can cooperate in the administration of the Estate as envisioned by Mr. Hage. We should note, however, that many of the allegations obviously require proof, for they will form the basis upon which the trial court acts in distributing the properties and identifying the distributees of the estate upon closure. These will require a hearing, at which proof of the allegations must be provided. We cannot draw conclusions as to them in the absence of such proof in the records, and we are not authorized to take evidence at this level of such allegations. Hence, there is need for immediate investigation by the lower court to form the basis for a prompt closure of the estate.

Finally, the records indicate that in their motion to exclude certain properties from the Hage Estate, the appellees complained that the appellant has been and is still lavishly, destructively and without accountability operating the estate as a personal entity, undoing acts of decedent Milad R. Hage, such as illegally nullifying written authorization given by the deceased to ECOBANK to collect the rental from his stores to liquidate his obligation to said Bank, which rental Respondent is personally collecting and converting to his own use, and also illegally disposing of non-perishable personal properties of the Estate. Although these allegations are grounds for the revocation of letters testamentary and of administration of an executor or administrator, and are therefore grounds for the removal of an executor or administrator, the appellees' lawyers filed no petition or motion with the Monthly and Probate Court specifically and squarely demanding an investigation of these allegations, so that upon the Judge's refusal to conduct such investigation, or if the Judge had rendered an adverse decision, an appropriate remedy either via a remedial writ or an appeal, would have been instituted on behalf of the appellees. But we must emphasize that the allegations made by the appellees are, in the eyes of the law, mere allegations and do not amount to proof. This will require the taking of evidence, including the claim that Ecobank was ousted from collecting rentals of the Hage Estate. This Court takes judicial notice of the fact that there is a current dispute between the Hage Estate and Ecobank regarding the matter of Ecobank's administration of the Estate, which is still awaiting final resolution by the trial court. We must therefore be cautious with regards to the allegations made and reiterate that proof must be presented by the appellees. That can only happen in the lower court, not at the level of the Supreme Court. But again, and as with the other failures of the appellees' lawyers as stated *supra*, the lawyers took no action, which in action worked an unacceptable detriment to the substantial interests of the appellees.

In our adversary system of jurisprudence, a party litigant who is not represented by a lawyer or who is represented by a lawyer but whose lawyer is either incompetent, or is competent but negligent in his or her representation of such party litigant, cannot be assured a fair trial. Both sides in every case

need adequate and efficient representation. Even the most intelligent and educated layperson has little or no skill in the science of law and hence, requires the assistance of counsel at every step in the litigation process. Without the assistance of competent and committed counsel, a party litigant faces the danger of injustice, even if the preponderance of evidence is in his or her favor. This is why lawyers must do their best in the representation of their clients. But can we say with sincerity that the lawyers who represented the appellees before the Monthly and Probate Court exerted their very best professional effort in the representation of the appellees? We answer this question in the negative and hold that the appellees were inadequately and ineffectively represented at the various hearings before the Monthly and Probate Court. Clearly as indicated above, the lawyers representing the appellees failed to take rudimentary steps necessary to protect the interests of the appellees.

In this Court's quest for the administration of transparent justice in this country, we have from time to time not insisted on the strict and rigid application of procedural rules in the interest of justice and equity. Thus, where the professional competence, quality, adequacy and/or effectiveness of lawyers in the representations of their clients' interest in a particular case have been questioned, we have decided that the interest of justice superseded the technical application of the procedural rules and heard such case on its merits, especially where the conduct of the trial by the trial court judge seemed to have engulfed serious injustice upon one or more of the parties to the suit. As the judge is from the ranks of the Judiciary, we have the constitutional obligation not to turn a blind eye to his conduct, or the negligence of counsel which necessitates such conduct or the resulting injustice to a party. The case: *Donzo v. Ahmed*, 37 LLR 103 (1993) is an example. In that case, petitioner, Abu F. Donzo filed a petition for cancellation of a lease agreement against respondent, Zhang Guan Fu in the Civil Law Court. Subsequently, the respondent executed a limited power of attorney in favor of Zaffar A. Ahmed and Zhang Guo Yong, appointing them as his attorneys-in-fact to represent him in the proceeding before the Civil Law Court. The petition for cancellation of lease was heard and the trial judge rendered a judgment in favor of the petitioner. Following the judge's ruling, counsel for the respondent, Counsellor Joseph Findley, noted an exception to the judgment and announced an appeal to the Honorable Supreme Court. Despite noting an exception to the ruling and announcing an appeal to this Court, Counsellor Findley failed and neglected to file the respondent's bill of exceptions as required by the appeal statute on the ground that he did not know the whereabouts of respondent.

Upon the lapse of the statutory period within which the respondent's bill of exceptions should have been filed, the petitioner filed a motion to dismiss the respondent's appeal pursuant to Chapter 56, Section 51.16 of the Civil Procedure Law, for failure of the respondent to proceed. One day after the filing of the petitioner's motion to dismiss, the respondent filed a bill of exceptions which the trial judge approved nunc pro tunc. Six days later, the petitioner filed a motion to strike the bill of exceptions. When the two motions were scheduled for hearing, the respondent filed a petition for a writ of prohibition before the Justice in Chambers, praying the Justice in Chambers to issue a writ prohibiting the trial judge from hearing the motion to dismiss and the motion to strike the bill of exceptions, asserting as the ground therefor the fact that the trial judge had lost jurisdiction over the subject matter of the case when he approved the bill of exceptions nunc pro tunc. The Chambers Justice granted the prohibition and the petitioner noted an exception to the Chambers Justice's ruling and announced an appeal to the Full Bench of the Supreme Court, which he later withdrew. After the withdrawal of his appeal of the Chambers Justice's ruling, the petitioner appeared before the

Supreme Court praying the Supreme Court to dismiss the appeal announced by the respondent in the Civil Law Court. In deciding the respondent's motion to dismiss the appeal, we held that Counsellor Findley's negligence and carelessness in failing to present his client's bill of exceptions to the trial judge within statutory period to the detriment of his client, which negligence and carelessness resulted in procedural technicality, did not prevent us from a fair determination of the case on its merits.

In the instant case, like the Donzo case, the appellees' lawyers were negligent and careless in adequately and effectively representing the appellees' interests and the protection of their rights. As stated supra, should we, as a Court of last resort, close our eyes to the resulting injustice, brought about by such gross negligence, and dismiss appellees' case and thereby deny them, as citizens of Liberia, of their property rights or should we, in the interest of and as dispenser of justice and equity, remand this case to the Monthly and Probate Court for further proceedings? We believe that in order to serve the interest of transparent justice, equity demands that this case should be remanded to the trial court for further proceedings, so that all of the parties are guaranteed the full access to and enjoyment of the due process of law, including the adequate representation by counsel. We hold, therefore, that notwithstanding the appellees' failure to comply with the strict requirements of the statute, due solely to the negligent conduct of their lawyers, such failure, under the circumstances of this case, should not deprive them of so fundamental a right guaranteed by the Constitution, and as the failure is not imputable personally to the appellees, this warrants a remand of the case.

Wherefore, and in view of the foregoing, the Clerk of this Court is hereby ordered to send a mandate to the Monthly and Probate Court for Montserrado County instructing the Judge therein to resume jurisdiction over this case and:

- a) Order the appellant to submit to the Monthly and Probate Court for Montserrado County a comprehensive inventory of the Hage Estate's assets, as required by the Decedents Estates Law, as well as its liabilities; b) In connection with (a), further order that a comprehensive audit be conducted for both the period the executor administered the Hage and the period Ecobank collected proceeds of the Estate to cover loans given by Ecobank to the late Hage, to ensure that no illegal or irregular acts were perpetrated on the Estate. The audit shall include recommendations of steps and actions to be taken in the event of any findings of improper collection or use of the Estate's funds by any of the fiduciaries. The foregoing acts shall be without prejudice to any actions commenced or pending in any courts of the Republic by or between any of the parties named herein.
- c) Order the appellant to furnish a detail statement of the status of the loan facility the Hage Estate has with the Ecobank;
- d) Ensure that the appellant establishes an account (if such account is not already established) into which all monies belonging to the Hage Estate are deposited; operation of the account shall be with the approval of the Monthly and Probate Court for Montserrado County.
- e) Forthwith investigate the allegations of malpractices alleged to have been committed by the appellant in his handling of the Hage Estate's properties, including the Estate's funds;

- f) Revoke the appellant's letters testamentary in the event that the investigation conducted pursuant to "d" above reveals that the appellant has engaged in misconduct or mismanagement of the affairs of the Rage Estate;
- g) Determine whether or not the lease agreement executed by and between Oumou Sirleaf-Hage and Milad R. Hage has expired in accordance with its terms and conditions, and in the event that said lease agreement is determined to have expired, return all properties covered by the agreement to Oumou Sirleaf-Hage;
- h) Determine whether or not the property or properties covered by the lease agreement include properties owned by the children of Milad R. Hage and Oumou Sirleaf-Hage, and if so, render void the lease agreement by and between Oumou Sirleaf-Hage and Milad R. Hage insofar as it covers and relates to the properties owned by said children;
- i) Determine whether or not the conduct of the appellant as relates to Oumou Sirleaf-Hage, constitutes a disavowal of the Last Will and Testament of Milad R. Hage, and if so, revoke the appellant's letters testamentary and remove him from his position as Executor of the Hage Estate; and
- j) Determine whether or not the disharmony between the appellant and the appellees necessitates an immediate closure of the Estate.
- k) Given that this case has been pending for a long time without final determination, the Monthly and Probate Court is mandated to give it first priority handling.

The Clerk of this Court is hereby ordered to send a mandate to the Monthly and Probate Court of Montserrado County from whence this case emanated to resume jurisdiction over this case and give effect to this judgment. Costs to abide final determination. It is so ordered.

COUNSELLOR MILTON D. TAYLOR OF TAYLOR & ASSOCIATES, INC. AND COUNSELLOR VIAMA J. BLAMA OF NATIONAL EDUCATORS LAWYERS ASSOCIATION OF LIBERIA APPEARED FOR THE APPELLANT.

COUNSELLOR EMMANUEL R. BERRY OF BERRY LAW FIRM, COUNSELLOR DAVID A. B. JALLAH OF DAVID A. B. JALLAH LAW FIRM, COUNSELLOR FREDRICK DOE CHERUE OF DUGBOR LAW FIRM, AND COUNSELLOR SAYMA SYRENIUS CEPHAS APPEARED FOR THE APPELLEE. Case remanded.